STATE OF MICHIGAN

IN THE 52/3 JUDICIAL DISTRICT

THE PEOPLE OF THE STATE OF MICHIGAN,

Plaintiff,

v Case No. 24-007808

FOX ROBERT PARTON,

Defendant.
_____/

JURY SELECTION

BEFORE THE HONORABLE NANCY TOLWIN CARNIAK, P-37601

Rochester Hills, Michigan - May 15, 2025

APPEARANCES:

For the People: MR. KYLE S. PASKULOVICH, P-86231
Assistant Prosecutor
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For the Defendant: MR. HAROLD A. DOWNER, P-77234
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PLAINTIFF WITNESSES:

None called.

DEFENSE WITNESSES:

None called.

EXHIBITS:	MARKED	ADMITTED
None marked.		

1 Rochester Hills, Michigan
2 May 15, 2025
3 At 9:22 a.m.
4 - - -
5 THE COURT: Calling the case of People versus
6 Parton, 24-7808.
7 MR. PASKULOVICH: Good morning, your Honor.
8 Kyle Paskulovich appearing on behalf of the People.
9 MR. DOWNER: Good morning, your Honor. Harold
10 Downer with and on behalf of Mr. Parton, who's present and
11 approaching the podium.
12 Mr. Parton, please state your full name for the
13 record.
14 THE DEFENDANT: Fox Parton.
15 THE COURT: Thank you, sir. If at any time you
16 don't hear or understand anything, will you please let me
17 and your attorney know?
18 THE DEFENDANT: Yes, your Honor.
19 THE COURT: All right. And we're here today, of
20 course, for jury selection. Are both sides ready to
21 proceed?
22 MR. PASKULOVICH: People are prepared to
23 proceed.
24 MR. DOWNER: No, your Honor. At this time at
25 the direction of Mr. Parton, I wish to move to withdraw

1 from representation. Unless he authorizes me to go into
2 the details of our communication, I will say that the
3 nature is a breakdown of the attorney-client relationship
4 due to basically impasses as to strategies and how to
5 proceed on his matter, in particular, in motions and
6 arguments he would like to make. Due to this impasse and
7 the breakdown in the attorney-client relationship, it's
8 Mr. Parton's desire to represent himself. To effectuate
9 his choices in that regard, I'm making that motion.
10 THE COURT: Thank you.
11 Before I address the motion, sir, I guess I
12 would ask a few questions of you. You heard and
13 understood what your attorney just stated, correct?
14 THE DEFENDANT: Yes, your Honor.
15 THE COURT: And are you in agreement with that?
16 THE DEFENDANT: Yes, your Honor.
17 THE COURT: You'd prefer to represent yourself?
18 THE DEFENDANT: Yes, your Honor.
19 THE COURT: Okay. A few things, obviously you
20 don't have any legal training, I'm assuming; is that
21 correct?
22 THE DEFENDANT: No, your Honor.
23 THE COURT: Okay. And the jury wants to hear
24 both sides of the story, but I have to comply with the
25 Rules of Evidence and all the laws as well as the Court

1 Rules, of course. So I'm going to rule according to that,
2 not whether I think something the jury should hear it or
3 not. So I'm just concerned that perhaps your side of the
4 story may not get in. Knowing that is it still your
5 desire to proceed without counsel?
6 THE DEFENDANT: Yes, your Honor.
7 THE COURT: Okay. And anything from the People?
8 I'm assuming you take no position as it relates to this?
9 MR. PASKULOVICH: To defense counsel's motion to
10 withdraw, I would not take position, and if the Court's
11 just ruling on that. But in terms of defendant
12 representing himself, I would request there be standby
13 counsel in that event.
14 I guess I'd have to take a look into it. I
15 don't know if it would be particularly worthy of the
16 People to file a motion for the standby counsel to be the
17 one cross-examining the victim in this case. I know
18 that's a common practice for minor victims, but just being
19 that it's a stalking case, I don't know if that's
20 something that can be appropriate.
21 THE COURT: You know, I've never had that issue
22 before, so I'm not really --
23 MR. PASKULOVICH: I just had it in a case where
24 -- granted for a minor victim where the defendant wanted
25 to cross-examine the minor victim and Judge Rowe ruled

1 standby counsel had to do it so that the defendant didn't
2 have direct interaction with the victim, but I'd have to
3 look to see if that's --
4 THE COURT: Is there -- do you have case law on
5 that? I mean, because I'm just assuming that we can
6 proceed.
7 As it relates to your motion, I understand for
8 the reasons you've indicated that you no longer wish to
9 represent him, but can you still act as standby counsel in
10 case he has any legal questions? That would be your role.
11 Because the next attorney may have, I would assume, have
12 similar objections, and so it would be the same thing.
13 Can you act as standby counsel?
14 MR. DOWNER: In a working relationship sense,
15 yes, your Honor. And I have to be entirely honest. I
16 don't know of standby counsel policy for the County MIDC
17 and the Public Defender's Office at large, but it was an
18 issue that I was involved with in Jackson County, and
19 there was an issue in which the determination that was
20 communicated to Jackson County was that MIDC funding
21 cannot be used for standby counsel.
22 THE COURT: Well, we have used standby counsel
23 on another occasion here.
24 MR. DOWNER: Yeah. And so I don't know -- I
25 don't know how that shakes out or if I will -- I don't

1 know if the Public Defender's Office and me as a member of
2 that is allowed to. Assuming we are and assuming Mr.
3 Parton does not object to me continuing on in that role, I
4 see no reason why I could not.
5 THE COURT: Okay.
6 MR. DOWNER: Other than if there's an
7 administrative issue with that, I just don't know.
8 THE COURT: Thank you.
9 THE DEFENDANT: May I have permission to speak,
10 your Honor?
11 THE COURT: Yes, of course.
12 THE DEFENDANT: Because I did prepare a
13 statement that encompassed all of this myself if you'd
14 like to hear it, but I had specifically intended to
15 request standby counsel because I have a low income. I'm
16 verified below the federal poverty line. I live over an
17 hour away from the court, so just from a standpoint --
18 THE COURT: Okay. I'm going to stop you for a
19 minute. I think you should have standby counsel. But you
20 understand what their role is, only for you to ask
21 questions as it relates to issues -- thank you. It's
22 limited in nature.
23 However, based upon the issue that was just
24 brought up by the assistant prosecuting official, it may
25 be your role to cross-examine the victim in that regard.

1 MR. DOWNER: And I think that motion is worth
2 being fully briefed and argued as well, especially because
3 I think there's a significant difference between a minor
4 child being questioned and an adult being questioned, even
5 with similar facts. Otherwise every victim would be -- I
6 think there's a lot of argument there, but --
7 THE COURT: I don't know. I guess I'd like to
8 know because the charge regarding stalking and the victim,
9 that sounds like it could be akin to a juvenile case.
10 MR. PASKULOVICH: Looking at the case law, your
11 Honor, none of it seems to be directed directly towards a
12 minor victim. In holding that, you know, defendant's
13 right to self-representation is not absolute, judge's
14 discretion to terminate defendant's self-representation in
15 certain circumstances by allowing that there be standby
16 counsel directly by a no contact order in this case by
17 having the interaction between them. All the case law
18 that was cited in my -- or if my motion is granted, really
19 none of it is -- none of it's directed towards a minor
20 victim. It's more so the victim having their alleged
21 abuser or stalker, in this case, being the one to ask the
22 questions.
23 THE COURT: Yeah. I mean, that makes sense. I
24 mean, are you -- it sounds like you're asking for an
25 adjournment, but we need to make sure that you can act as

1 standby counsel, number one, before we proceed.
2 Are you ready to go today, or are you requesting
3 an adjournment as well?
4 MR. PASKULOVICH: So I would be ready to go
5 today, but I would ask, I guess, unless the Court would
6 like a formal motion and brief to be on that issue, then I
7 would -- if in order to consider it, then I'd want an
8 adjournment, but if the Court would just be willing to
9 hear the argument today, I'd be prepared to proceed.
10 THE COURT: Well, I don't -- based upon what
11 you've indicated, I mean, I can take a look at the case
12 law as it relates to this. And would there be a reason
13 why you would be objecting to that?
14 MR. DOWNER: Yes. One, I think it signals a
15 level of dangerousness to the client in regards to Mr.
16 Parton subconsciously to the jury. The jury obviously, by
17 the time that individual is cross-examined, would know
18 that he's representing himself and to have someone else
19 question this one individual would highlight something
20 different going on and could -- and a juror could
21 improperly, in my opinion, infer a level of dangerousness
22 to Mr. Parton that --
23 THE COURT: Couldn't that be addressed with a
24 jury instruction?
25 MR. DOWNER: I think that's the kind of the

1 situation where called -- is a double edge sword, can both
2 cause some understanding but also would also just further
3 highlight the inference of something special going on that
4 was required. I also believe this is a circumstance where
5 -- I'm not aware of any violations of the no contact
6 order. I am aware, and I believe Mr. Paskulovich is
7 aware, that there was PPO proceedings in which Mr. Parton
8 represented himself, and so the complainant in this
9 instance has gone through that, and I think at the very
10 least it is worth there being a record fully on beyond
11 just the fact that it's a complaint of alleged stalking
12 that makes that necessary in this instance.
13 THE COURT: Well, the PPO, he didn't directly
14 cross-examine her. That's the difference in the PPO. I
15 mean, that's what you're indicating he's already been
16 through this with her?
17 MR. PASKULOVICH: It's my understanding that the
18 defendant did, which is why it gives us concern.
19 THE COURT: Oh.
20 MR. PASKULOVICH: Because the victim feels that
21 it was further perpetuating a stalking and harassment by
22 having this PPO hearing and it going on in that matter.
23 THE COURT: At the PPO hearing the defendant
24 questioned the victim?
25 MR. PASKULOVICH: It was my understanding that

1 the defendant presented his own case and had questions. I
2 could be wrong.
3 THE DEFENDANT: Your Honor, may I interject for
4 just a moment?
5 THE COURT: Can I ask you -- yes. Can I ask you
6 just a question before that?
7 THE DEFENDANT: Absolutely, your Honor.
8 THE COURT: At the PPO hearing you represented
9 yourself, correct?
10 THE DEFENDANT: Correct, your Honor.
11 THE COURT: And did you question the complainant
12 under oath?
13 THE DEFENDANT: The cross-examine?
14 THE COURT: Yes. You asked questions?
15 THE DEFENDANT: The complaining witness?
16 THE COURT: Yes.
17 THE DEFENDANT: To the best of my knowledge,
18 yes, your Honor.
19 THE COURT: What do you mean to the best of your
20 knowledge?
21 THE DEFENDANT: This is my first time ever being
22 involved in court proceedings. I just don’t want to say
23 anything incorrect. To my knowledge the way that the
24 hearing went, yes, I --
25 THE COURT: Ms. Walters took the stand -- yeah,

1 go ahead.

2 MR. DOWNER: While on the record before the

3 judge, you asked questions directly of Ms. Walters?

4 THE DEFENDANT: Yes.

5 THE COURT: Okay.

6 THE DEFENDANT: If I might add to what he was

7 saying --

8 THE COURT: Yeah.

9 THE DEFENDANT: -- what Mr. Downer was saying,

10 your Honor. I understand this revolves around this

11 alleged victim. I actually objected to referring to her

12 as a victim until I've been convicted because it's

13 prejudicial. I would prefer she be referred to as the

14 complaining witness.

15 Aside from evidentiary concerns, because I have

16 some motions concerning, even within the evidence alleged

17 that there's no indication of threat, I have no prior

18 criminal history. There hasn't been any allegation of

19 threat at any of these PPO proceedings where we were

20 allowed to directly cross-examine one another. From what

21 it appears, if that's what happened, then that sounds like

22 what happened.

23 So I would think that it would be prejudicial if

24 you said at this point that I'm such a threat to this

25 person or interacting with me is such a threat without

1 having actually been convicted based on the evidence that
2 I should not be allowed to cross-examine the --
3 THE COURT: Well, it's kind of circular
4 reasoning. You can't be convicted until there's a trial.
5 THE DEFENDANT: Correct.
6 THE COURT: So, you know, I don't know. I mean,
7 obviously that's an issue.
8 MR. PASKULOVICH: Your Honor, if he gives the
9 Court some context, these are just allegations, but the
10 allegations in this case revolved around the defendant and
11 the victim being in the same middle school, having
12 interaction years ago, and then no interaction and the
13 years have gone by, and then the defendant allegedly
14 showing up at the victim's house, the victim's mother's
15 house, and contact with her and there being nothing in
16 between.
17 THE COURT: Let me ask you this. You probably
18 haven't mentioned this to Ms. Walters, and that's how we
19 will refer to her, is that she -- I know the People are
20 objecting to that, but does Ms. Walters have a problem
21 with that?
22 MR. PASKULOVICH: She does. She's dreading
23 having to come to court again and be -- having
24 interaction. She said she dreads having interaction with
25 the defendant himself. She described the PPO hearing as

1 long and painful.

2 THE COURT: Okay. All right.

3 THE DEFENDANT: If I could add, your Honor, I

4 would similarly describe my experiences in this entire

5 situation as long and painful and there’s no shortage of

6 emotional distress on my end attempting to defend myself

7 against these allegations. And I understand that the

8 statute as it's written right now or the legal framework

9 is such that the party, which is elevated to the status of

10 alleged victim, gets precedence for their emotional state.

11 The whole proceeding revolves around whether or not this

12 person was, in fact, afraid or whether a reasonable person

13 would be afraid, and so we give very careful consideration

14 to this person before evidence has even been admitted or

15 authenticated. But I also go through my own emotional

16 distress dealing with this, and yet I’m ready to show up

17 and deal with it.

18 THE COURT: So are you ready to proceed today to

19 trial?

20 THE DEFENDANT: I believe so, your Honor, yes.

21 MR. DOWNER: And, your Honor, just so your

22 Honor’s aware, I know that there are two motions that

23 Mr. Parton has filed --

24 THE COURT: Wait --

25 MR. DOWNER: -- well, I’m sorry, has written and

1 would like to file on this matter.

2 THE COURT: Why are you bringing that up if I

3 grant your motion?

4 MR. DOWNER: Oh, I --

5 THE COURT: I don't know. He's ready to

6 proceed, he said.

7 MR. DOWNER: Correct.

8 THE COURT: Okay.

9 MR. DOWNER: And I brought it up because your

10 Honor hasn't granted that motion yet, and if you do grant

11 that motion, I know there are motions that he wants to

12 have heard and I want your Honor to be aware of that.

13 THE COURT: Well, he hasn't mentioned that at

14 all. He said he's ready to proceed to trial.

15 So I will grant the motion for you to withdraw

16 as it relates to this; however, we're going to contact

17 MIDC regarding standby counsel to see if you can act as

18 standby counsel.

19 THE DEFENDANT: Your Honor, I didn't get a

20 chance to mention, I think at one point we got kind of

21 sidetracked when we were discussing the cross-examination,

22 but beforehand I had wanted to ask specifically with the

23 standby counsel that they be able to assist me with the

24 actual filing and serving of motions only because, as I

25 said before, I'm over an hour away from the courthouse.

1 I'm low income. Certified mailing is expensive for --
2 THE COURT: So you're either representing
3 yourself or you're not representing yourself in that
4 regard.
5 THE DEFENDANT: Well, I understand, your Honor.
6 What I'm saying is that I would still be --
7 THE COURT: So what motions -- there's no
8 motions. We're ready for trial. You indicated you're
9 ready for trial. I'm not understanding.
10 THE DEFENDANT: I was indicating I'm ready to
11 proceed here. I have pretrial motions to file only because
12 there was last-minute evidence that wasn't disclosed to me
13 until two days --
14 THE COURT: What are your pretrial motions?
15 THE DEFENDANT: It's a motion in limine
16 concerning the evidence that the prosecution has brought
17 and then a conditional motion to dismiss based on whether
18 or not that motion is admitted -- or, I'm sorry, granted.
19 THE COURT: Specifically what is your motion in
20 limine for?
21 THE DEFENDANT: For the information contained in
22 the discovery report concerning screenshots submitted by
23 Ms. Walters as well as the return from the warrant issued
24 to Facebook and some --
25 THE COURT: So what are you objecting to? What

1 is it that you don't -- what is it that the People are
2 going to be admitting that you -- or potentially admitting
3 that you want not admitted?
4 THE DEFENDANT: Well, there's extreme
5 contradictions between --
6 THE COURT: What documents is it that you do not
7 want admitted? Is that what your motion is for?
8 THE DEFENDANT: That's what my motion is for,
9 your Honor.
10 THE COURT: Okay. What specific documents?
11 THE DEFENDANT: Specifically the warrant, which
12 has been returned from Facebook.
13 THE COURT: The warrant?
14 THE DEFENDANT: The warrant. They issued a
15 search warrant to Facebook, which was fulfilled back on
16 January 7th. They didn't add it to the report until, I
17 believe, Mr. Downer received May 9th.
18 THE COURT: You don't want the search warrant
19 admitted.
20 THE DEFENDANT: Well, see, it's outlined
21 probably a lot more clearly than I could give to you
22 verbally in a written format in the motion because there
23 is -- the vast majority of the screenshots that the
24 witness submitted aren't corroborated by the warrant
25 return. They don't exist according to the warrant.

1 THE COURT: So specifically what are you
2 requesting that the jury not see?
3 THE DEFENDANT: The screenshots that have been
4 submitted by Ms. Walters the prosecution intends to use.
5 THE COURT: Are the People going to be using
6 screenshots?
7 MR. PASKULOVICH: Yes, your Honor.
8 THE COURT: Okay. And why should those not be
9 admitted?
10 THE DEFENDANT: Because the return from the
11 warrant showed that they do not exist. There's no
12 evidence that those -- any of those accounts that the
13 warrant was for ever actually communicating with the
14 complaining witness, and it has -- because of the
15 complexity of this issue, that's why I'd like to give you
16 the written version of the motion because they issued a
17 warrant for five different accounts, and it's got
18 communications between all these different accounts.
19 THE COURT: What is the legal reason that they
20 should not be admitted?
21 THE DEFENDANT: Let me check. I have it right
22 here. Digital evidence must be authenticated, MRE 901.
23 THE COURT: Okay. As it relates to
24 authentication, Counsel, is there an issue regarding
25 authentication?

1 MR. PASKULOVICH: Your Honor, I don't believe
2 there will be any issue with authentication. I think that
3 the victim can authenticate it based upon it being her
4 account and that's what she received.
5 THE DEFENDANT: Your Honor, I would object to
6 that because the complaining witness doesn't actually have
7 firsthand knowledge over who operates what Facebook
8 accounts. She doesn't know that I operated any Facebook
9 account. And, like I said, when the search warrant came
10 back, none of these conversations that she submitted as
11 screenshots, with the exception of one that came from Xof
12 Notrap, something that there's no admission on my part to,
13 no evidence tying that account to me. That's the only --
14 those are the only communications corroborated by the
15 screenshots she submitted. All of the other ones, the
16 ones that are between me, Fox Parton, and Brianna Walters,
17 there appears to be different accounts.
18 When the return came back five months ago, none
19 of those communications are shown to exist --
20 THE COURT: So are you indicating that -- so
21 your defense is that you did not send those?
22 THE DEFENDANT: That's correct, your Honor.
23 THE COURT: Okay. So as it relates to that, it
24 would go to -- I'm assuming it would go to the weight of
25 the evidence. The People have to prove that you did

1 submit those from that. So they likely will be admitted
2 and it would go to the weight of the evidence as it
3 relates to that.
4 But besides the fact that she received it,
5 because that's probably all she can testify to, that she
6 received it and it came from this account, they're going
7 to connect the dots somehow to show that it came from you.
8 THE DEFENDANT: Absolutely, your Honor.
9 THE COURT: Okay. So I don't --
10 THE DEFENDANT: I suppose it's -- I don't see
11 how the messages can be authenticated when another piece
12 of evidence that sits here directly contradicts the idea
13 that they ever existed.
14 THE COURT: Well, I'm assuming that you're going
15 to bring that evidence in.
16 THE DEFENDANT: Correct. Well, I outlined all
17 of that -- well, the evidence is already in the discovery
18 report. The prosecution has already brought it.
19 MR. PASKULOVICH: I think there's some confusion
20 as between what's in discovery and what will be admitted
21 at trial.
22 THE COURT: Yes. Yeah. So you can bring
23 whatever information and object to it and bring other
24 evidence, and I'm assuming you're indicating the search
25 warrant. Is that what you're indicating?

1 THE DEFENDANT: Yes, your Honor.

2 THE COURT: Okay. All right. So you can object

3 to that as it relates to this. They do need to

4 authenticate it, and, again, it will go -- she can testify

5 as to, yes, this is what I received. It says it came from

6 this account, but they still have to piece it together

7 that it came from you.

8 THE DEFENDANT: Correct, your Honor.

9 THE COURT: Okay.

10 THE DEFENDANT: But I do consider it highly

11 prejudicial. I think that, you know, if you have messages

12 that have any sort of content that you can't actually back

13 up in any way besides the complaining witness's testimony,

14 the things that are said in those messages are going to

15 subconsciously impact the jurors and how they see the

16 situation. They see the profile pictures that have my

17 face and they see those messages, and they're going to

18 associate those with me and they're going to consider that

19 my voice.

20 So there's a lot of prejudicial damage caused by

21 that versus the probative value when the search warrant

22 itself doesn't corroborate that these screenshots existed.

23 I mean, it's as simple as that. I should think that's the

24 hardest evidence that you can get in a case like this.

25 THE COURT: When he's talking about the search

1 warrant, that there was nothing found in the search
2 warrant? Is that what he's talking about?
3 MR. PASKULOVICH: Your Honor, he's referring to
4 there's a search warrant for Meta, who's the owner of
5 Facebook. Some of the messages -- and this happens all
6 the time. Some of the messages aren't included in the
7 actual return. Only certain types of content are retained
8 and then produced to the search warrant. So there's
9 actual screenshots from the user's phone associated with
10 the account and then some of those screenshots aren't
11 included in the official business records from the search
12 warrant return from that.
13 THE COURT: I see.
14 MR. PASKULOVICH: So he's saying because it's
15 not in the return, he doubts the authenticity of the
16 actual screenshot --
17 THE COURT: I see.
18 MR. PASKULOVICH: -- being received on the
19 victim's phone.
20 THE COURT: And besides her testimony, is there
21 anything else that you're going to be introducing as it
22 relates to either the authentication or connecting the --
23 MR. PASKULOVICH: Yeah. Your Honor, the full
24 admission to the defendant will likely be the main way we
25 can authenticate it.

1 THE COURT: Oh, okay.

2 MR. PASKULOVICH: (Inaudible) mirandized and

3 (inaudible) --

4 THE COURT: Okay. Thank you.

5 Okay. So you can object to that, but my thought

6 is based upon everything that's been presented that it

7 will be admitted and it will go to the weight of the

8 evidence.

9 What's your next motion?

10 THE DEFENDANT: My next motion was going to be a

11 conditional motion to dismiss for lack of probable cause

12 since those messages weren't corroborated by the return,

13 but I suppose that's moot at this point.

14 THE COURT: Okay.

15 THE DEFENDANT: I also wanted to -- it's in the

16 motion -- object to the e-mails. Same principle, the

17 e-mails that the complaining witness alleges came from me.

18 One of them she claims came from 2014 within the report.

19 There's absolutely nothing backing this up. I mean,

20 anybody can type something into a Word document and say,

21 hey, this person sent it to me.

22 THE COURT: What is the specific -- it's an

23 e-mail from 2014?

24 THE DEFENDANT: There's multiple Microsoft Word

25 documents included in the report that purport to be

1 letters sent from me that don't have any additional
2 evidence corroborating that, and I consider them, again,
3 highly prejudicial because it kind of puts words in my
4 mouth and makes the jury associate a voice with me when
5 the only thing authenticating or laying a foundation for
6 those are this person saying that I sent them.
7 THE COURT: Let me ask the People. Are these
8 messages from 2014, are they going to be utilized in
9 trial?
10 MR. PASKULOVICH: Likely not.
11 THE COURT: Okay. So that's not an issue.
12 MR. PASKULOVICH: Your Honor --
13 THE DEFENDANT: It says e-mails -- I'm sorry.
14 When I looked at it -- one second, Judge.
15 MR. PASKULOVICH: Your Honor, I should have
16 brought this to the Court's attention earlier, and I did
17 give Mr. Downer notice of this, but it probably is
18 relevant to all these issues. In the jury instruction
19 includes I was going to amend the date of offense.
20 Currently it just has December 24, 2024.
21 THE COURT: Yes.
22 MR. PASKULOVICH: But I was going to do June 27,
23 2024, through December 24, 2024. I think that would more
24 encompass the act of events.
25 THE COURT: Okay. Let me see. Let me get the

1 complaint out.

2 THE DEFENDANT: I'm sorry, sir. Because I was

3 trying to locate this document, could you repeat what you

4 just said?

5 MR. PASKULOVICH: So I've given notice to

6 Mr. Downer and it's in the jury instruction, but I was

7 going to move the date of offense to be June 27, 2024,

8 through December 24, 2024, just so that all the referenced

9 activities that you've referenced, e-mails, whatnot, that

10 would encompass in that timeframe rather than just the one

11 day.

12 THE DEFENDANT: So that's setting -- you're

13 talking about setting the scope for what evidence we'll be

14 discussing.

15 MR. PASKULOVICH: No, just the date of offense

16 that the People have to prove.

17 THE DEFENDANT: The date of the offense, June

18 27th through --

19 MR. PASKULOVICH: June 27, 2024, through

20 December --

21 THE DEFENDANT: Are you saying 27th or 22nd?

22 MR. PASKULOVICH: Twenty-seventh.

23 THE DEFENDANT: Twenty-seventh.

24 MR. PASKULOVICH: So it'd be on or about June

25 27, 2024, to December 24, 2024.

1 THE COURT: Okay. Okay. The complaint will be
2 amended to reflect the dates because right now it just
3 says on or about December 21st.
4 MR. PASKULOVICH: Thank you.
5 THE COURT: Okay. I just have the warrant. I
6 don't have -- the complaint in here I don't see. Two
7 copies of the warrant.
8 THE DEFENDANT: Am I still allowed to speak,
9 your Honor?
10 THE COURT: You have another motion?
11 THE DEFENDANT: I do have another -- a judicial
12 notice.
13 THE COURT: Okay.
14 THE DEFENDANT: But I also wanted to make
15 reference to the exhibit list that the prosecution has
16 provided. Specifically they put 911 calls, videos, and
17 recording from defendant, mail from defendant. I'm not
18 familiar with any mail items being shown in the discovery
19 at all. But it seems rather vague to me. I wish --
20 THE COURT: What is your question? What is your
21 motion? What is your issue?
22 THE DEFENDANT: The discovery was only written.
23 It didn't contain any videos or recording or audio files
24 or anything like that, yet the prosecution is saying in
25 their exhibit list they just say six videos and recording

1 from defendant, and I'm just kind of asking what does that
2 mean? What am I supposed to prepare for?
3 THE COURT: Thank you.
4 MR. PASKULOVICH: Sure. It's just the videos of
5 defendant, that should be videos, his interview,
6 mirandized interview at the substation, that'd be the
7 video, and then mail from defendant would include the
8 e-mails that the defendant has sent to the Oakland County
9 Prosecutor's Office and to the victim in this case.
10 THE COURT: Okay. Does that clarify?
11 MR. PASKULOVICH: And that's been disclosed to
12 Mr. Downer, the e-mails he received.
13 THE DEFENDANT: That's --
14 MR. PASKULOVICH: Can you confirm that you
15 received those?
16 MR. DOWNER: I have received the e-mails. I
17 have also received the copy of the video interview.
18 THE COURT: Okay.
19 MR. DOWNER: That can be provided directly to
20 Mr. Parton.
21 THE COURT: Okay.
22 THE DEFENDANT: Can I have just a moment to
23 confer with my -- is Mr. Downer considered my limited
24 counsel at this point?
25 THE COURT: Yes, he is. Yes. We have made that

1 confirmation, so he is your standby counsel.

2 THE DEFENDANT: May I have just a moment to

3 confer with him?

4 THE COURT: Yes.

5 THE DEFENDANT: Thank you, your Honor.

6 MR. PASKULOVICH: Your Honor, I would just like

7 to place on the record at this point, too, that on today's

8 date, the People -- if the Court were to be inclined to

9 engage in any sort of Cobbs agreement or sentencing

10 agreement, the People on today's date would not object to

11 a probation, no upfront jail agreement for sentencing.

12 THE COURT: Okay.

13 MR. PASKULOVICH: But if this is to further

14 proceed, I can't say that the People would take the same

15 position.

16 THE COURT: All right.

17 MR. PASKULOVICH: Just because of --

18 THE COURT: Thank you. And the Court does agree

19 with the People and I would accept a Cobbs agreement.

20 You've indicated that you have no criminal

21 history, so there would be no upfront jail as it relates

22 to this matter. You would likely just be placed on a

23 period of probation, okay?

24 But the People -- are the People recommending --

25 or you're not saying what would happen thereafter

1 obviously.

2 MR. PASKULOVICH: If it goes to trial, I would

3 not be able to say that I would not object to no jail.

4 THE COURT: Okay.

5 MR. PASKULOVICH: Just given the circumstances

6 of how it goes. That's just because the defendant would

7 be taking some sort of responsibility today if he pled.

8 THE COURT: I see.

9 MR. PASKULOVICH: It would not be a punishment

10 for trial or anything of that sort.

11 THE COURT: Of course. Of course.

12 MR. PASKULOVICH: And I would not object to any

13 mental health court treatment or anything of that sort.

14 THE COURT: Okay. All right. If you want --

15 yes?

16 THE DEFENDANT: When you mention the Cobbs

17 agreement, your Honor, could you specify? When you said

18 that you'd be conducive to no upfront jail and a

19 probationary period, would that be supervised or

20 unsupervised, do you know?

21 THE COURT: What do you mean by supervised or

22 unsupervised?

23 THE DEFENDANT: Well, it's my understanding that

24 the Court can offer a supervised probation where you do

25 regular check-ins or there's random check-ins or

1 unsupervised probation where you may still be required to
2 attend hearings but there's no probationary check-in month
3 to month.
4 THE COURT: It would likely be a check-in, but
5 where do you reside?
6 THE DEFENDANT: I reside in Lapeer County.
7 THE COURT: Okay.
8 THE DEFENDANT: Like I said, I'm about an hour
9 away from here.
10 THE COURT: So based upon that, we can do
11 check-ins remotely, okay, if there's an issue regarding
12 distance. We can work that out. And I only supervise
13 people that need to be supervised. So if you're going --
14 you know, if you're doing fine, you know, the probation
15 officer may say skip next month or the next two months or
16 every other month or whatever it is. Initially it would
17 be however would be supervised, but I'm okay with remote
18 check-ins.
19 THE DEFENDANT: Okay.
20 THE COURT: Does that answer your question?
21 THE DEFENDANT: Yes, thank you, your Honor.
22 THE COURT: Okay. I just have to know and
23 indicate that that would be part of the agreement if you
24 choose to enter into an agreement.
25 THE DEFENDANT: As I requested before, your

1 Honor, may I have a moment to confer?

2 THE COURT: Of course. And you can step outside

3 if you would like.

4 THE DEFENDANT: Okay. Thank you, your Honor.

5 (At 9:53 a.m., matter passed.)

6 (At 10:10 a.m., case recalled.)

7 THE COURT: Recalling Parton, 24-7808.

8 Okay. After having consulted with counsel, how

9 is it -- where are we at?

10 THE DEFENDANT: The only thing left for me to

11 discuss with you, your Honor, is the submission of my

12 request for judicial notice.

13 THE COURT: Okay.

14 THE DEFENDANT: This is what I think really is

15 most appropriate to give to you in written format so that

16 you can see it. But I do have --

17 THE COURT: What are you requesting I take

18 judicial notice of?

19 THE DEFENDANT: Well, that’s the thing. There’s

20 a lot of them. I can read through all of them if you’d

21 like. I also have explanations here that I can use if you

22 have questions on it.

23 THE COURT: So why don’t we go one by one.

24 What’s the first one?

25 THE DEFENDANT: Bear with me just one second.

1 THE COURT: No problem. I think you had
2 mentioned, though. We didn't continue -- or I don't think
3 I made a ruling as it relates to referring to the victim,
4 complainant, etcetera. I think the best way to handle
5 that, although I did indicate to that, everybody needs to
6 refer to the individual as Ms. Walters, okay? So if we
7 can indicate that, I think that would be most appropriate.
8 MR. PASKULOVICH: Your Honor, I would just state
9 People's objection to that. I think the case law is clear
10 you can call the victim. Even in the jury instructions
11 there are times where it uses the word victim. The Court
12 of Appeals has spoke on the issue and said that there's,
13 although unpublished, there's no case law to support any
14 sort of argument that it's prejudicial to say the word
15 victim.
16 THE COURT: And you are correct. They are in
17 the -- I was just -- I thought it was helpful while we're
18 addressing this, but you're right. In the jury
19 instructions if it does indicate victim, that is
20 acceptable.
21 THE DEFENDANT: I just continue to object to her
22 being called a victim before anything's actually been
23 proven. If we're going to do that I'd say alleged victim
24 would be an appropriate prefix or complaining witness. I
25 don't have any issue with Ms. Walters other than the fact

1 that the only reason I know this is because of information
2 given through police report and PPO paperwork that her
3 name is actually Ms. Kennard now.
4 THE COURT: Okay. Well, I guess we need to use
5 the appropriate name as well.
6 MR. PASKULOVICH: And I would just also state, I
7 mean, although we all feel ways, defendant tells how he
8 feels, People are kind of feeling a certain way about
9 defendant. We all (inaudible). The law doesn't care
10 about what we think, and he's saying nothing other than
11 his objection, his feelings towards the word victim. He's
12 cited no case law, no court rules, no rule of evidence,
13 and he keeps saying prejudicial when, in fact, the
14 standard is unfairly prejudicial over probative value.
15 So we have defendant sitting here spewing
16 thoughts and emotions with no legal basis. So I just take
17 issue to that.
18 THE COURT: Okay.
19 THE DEFENDANT: Your Honor, if I could continue
20 before I was interrupted there, because I wasn't done
21 speaking as to my point. The prosecution is citing some
22 case law supporting the idea that because in the past
23 victim was able to be used and appeals held up that the
24 term victim was allowed to be used despite the fact that
25 it is proven innocent until guilty and calling someone a

1 victim preemptively, my objection is based in common sense
2 that this is going to prejudice the jury if you continue
3 to refer to someone as the victim. And I have no issue
4 with referring to the complaining witness by her name, as
5 you stated was your solution.
6 THE COURT: But technically counsel is correct.
7 He can utilize that. There's no law that indicates, and
8 as you can refer to her as alleged victim or complainant,
9 you are free to do that as well.
10 THE DEFENDANT: So just to clarify I am --
11 you're not making any ruling that I'm not allowed to refer
12 to her as the complaining witness.
13 THE COURT: Absolutely not. You can do that.
14 THE DEFENDANT: Okay.
15 THE COURT: Okay.
16 THE DEFENDANT: Thank you very much.
17 THE COURT: Okay. What is the -- what's the --
18 what is it that you wanted me to take judicial notice of?
19 THE DEFENDANT: Okay. I'll just read it from
20 the document so that it's proper --
21 THE COURT: Okay. One at a time.
22 THE DEFENDANT: -- and go through them one at a
23 time.
24 THE COURT: Yep.
25 THE DEFENDANT: Okay. All right. Defendant's

1 judicial notice, defendant appearing in propria persona
2 and pursuant to the Michigan Rule of Evidence MRE 201, I
3 respectfully request that this honorable Court take
4 judicial notice of the following facts, each presented in
5 a full version followed by independent generalized
6 summary.
7 The defendant asks the Court to consider and
8 rule on each item individually as each stands alone as a
9 matter not subject to reasonable dispute and relevant to
10 the evidentiary context of this case.
11 THE COURT: Okay.
12 THE DEFENDANT: Number one, wealth and equality
13 in the United States. As of 2022, families in the top 10
14 percent of the wealth distribution held 60 percent of all
15 wealth while families in the bottom half held 6 percent.
16 Summarized alternative to one, two, wealth disparity in
17 the United States remains extreme with a small portion of
18 the population controlling the majority of national
19 assets.
20 THE COURT: Okay. How is that relevant to this
21 case?
22 THE DEFENDANT: I think it’s relevant to take
23 notice of -- because I have other things in here that had
24 to do with emerging technologies that affect evidentiary
25 concerns, and I think it’s an evidentiary concern when you

1 have individuals that make millions of dollars an hour in
2 a world where most people struggle to get by, and the
3 corruption that that can happen, how that can affect
4 witnesses and the fact that that's the world that we live
5 in. People can be corrupted, and I just think that that
6 drives home -- from an evidentiary perspective it's an
7 important perspective to have for anybody that's going to
8 be a part of the legal proceedings that this influence
9 over other people can exist. There's dramatic one
10 sidedness of influence --
11 THE COURT: Okay. Hang on.
12 Do the People object to that?
13 MR. PASKULOVICH: Your Honor, I do object. I
14 don't think that there's -- the trier of fact here is the
15 jury. So I don't see any reason or what judicial notice
16 would achieve in this -- what the Court taking judicial
17 notice of that would do.
18 THE COURT: Thank you. I'm going to deny that
19 stipulation.
20 THE DEFENDANT: Okay. Moving on to three,
21 influence of concentrated wealth on evidence integrity.
22 Extremely wealthy individuals and institutions can
23 covertly influence legal outcomes, including by hiring
24 third parties to manipulate evidence. Hack for hire
25 networks charge between three and twenty thousand dollars

1 for compromised e-mail. The U.S. Department of Justice
2 has indicted Gautam Adani and his associates for massive
3 bribery operations and, of course, there's a link to a
4 source to justice.gov.
5 Four, summarized alternative to three,
6 extraordinary wealth can --
7 THE COURT: What is -- I'm sorry to interrupt.
8 What is the source that you're reading from?
9 THE DEFENDANT: That's exactly why I figured it
10 would be better to submit the motion to you in a way which
11 allows you to review it properly. I just provided a
12 source from a credible resource, justice.gov --
13 THE COURT: Which is what? Okay.
14 THE DEFENDANT: Discussing what I just said.
15 The Department of Justice indicted Gautam Adani and
16 associates for massive bribery operations and hack for
17 hire networks that charge between three and twenty
18 thousand dollars for compromised e-mail. That's the
19 source for that information.
20 THE COURT: Okay.
21 THE DEFENDANT: And that's why I provided a
22 summarized alternative so that you don't -- because I
23 understand it's supposed to be for facts that are beyond
24 dispute. So that's a summarized alternative to three.
25 Extraordinary wealth can enable covert manipulation of

1 evidence and corrupt influence over judicial records and
2 legal proceedings.
3 THE COURT: Thank you.
4 What is the People's response to that?
5 MR. PASKULOVICH: Your Honor, I'd object to any
6 sort of judicial notice. We're talking about vague facts
7 of e-mail integrity. There's no allegation that the
8 e-mail here has been -- the integrity's compromised. We
9 don't even have any e-mails yet that we proposed. When
10 there's authentication -- when the People try to
11 authenticate, defendant has the right to cross-examine the
12 witness that we use to authenticate it.
13 THE COURT: I would agree. I'm going to not
14 allow that as a stipulated fact. Obviously it is vague.
15 There's no way to cross-examine that to know if that is,
16 in fact, a stipulated fact, but you can hire an expert or
17 have something in that regard to challenge whatever it may
18 be.
19 What's your next requested stipulation?
20 THE DEFENDANT: I appreciate that, your Honor.
21 Five, illustration of extensive inequality. So this is
22 the last one that has to do with inequality.
23 THE COURT: Okay.
24 THE DEFENDANT: So I understand that this is --
25 but I'll read it for the sake of procedure.

1 THE COURT: Okay.

2 THE DEFENDANT: Elon Musk's estimated hourly

3 income is approximately 2.27 million dollars per hour.

4 Summarized alternative to five, the vast financial

5 resources of certain individuals allow for capabilities

6 that can exceed typical evidentiary protections or

7 oversight.

8 THE COURT: Okay. Again, the People object to

9 that?

10 MR. PASKULOVICH: Yes. Just for the Court's

11 edification, Elon Musk is not on our list of witnesses and

12 he has not been utilized as an expert.

13 THE COURT: Thank you. It will be -- yes, it's

14 not material as it relates to that, and there's other ways

15 to introduce I think what you're attempting to do but not

16 through -- that will not be allowed as a stipulated fact.

17 THE DEFENDANT: I appreciate you clarifying

18 that, your Honor, and just to clarify to my part, as I

19 said, this is just my first attempt to get something in

20 front of the jury, in front of the Court that just makes

21 it clear these possibilities and the fact that, you know,

22 if you're going to talk about reasonable doubt -- I'm

23 sorry, reasonable doubt in any sort of a case, not just

24 this case, but any case, you talk about the strength of

25 evidence and you talk about witnesses and you consider

1 what may have actually happened versus what either party
2 claims that happened, and the jury tries to make their
3 best decision. If you're not wise to all of the
4 possibilities of the ways the evidence can be manipulated
5 or testimony can be manipulated or its potential, then you
6 might underestimate it.
7 THE COURT: Thank you. What's your next request
8 for stipulated facts?
9 THE DEFENDANT: Seven, advances in technology
10 and cyber vulnerabilities. In 2022 the FBI received over
11 800,000 cybercrime complaints with total reported losses
12 exceeding ten billion dollars. The FBI warns that
13 AI-driven deep fake technology now enables the creation of
14 extremely realistic falsified digital content. That comes
15 from fbi.gov. My summarized alternative to seven,
16 technological advancement has increased the vulnerability
17 of digital systems and created new challenges for ensuring
18 the authenticity of digital evidence.
19 THE COURT: Thank you.
20 Counsel?
21 MR. PASKULOVICH: Your Honor, the People would
22 again object that I believe it's irrelevant, and all these
23 stipulations are -- would require People to stipulate to
24 facts that are not in evidence.
25 THE COURT: That is true. There's no way to --

1 first of all, the relevancy, you can bring that up if you
2 choose to do so as it relates to this issue but not by a
3 stipulated fact that we don't -- well, we know the source,
4 but there's no way to -- its accuracy as it relates to
5 that.
6 So anything else -- stipulated facts are more --
7 something that are -- a pleading, for example, take
8 judicial notice of a -- or judicial notice -- I keep
9 saying stipulated facts but I mean judicial notice -- that
10 there was a complaint filed, judicial notice that this is
11 a document and something as it relates to that. Facts and
12 issues in general, unless it's a very specific source and
13 it's related to this offense, are not appropriate.
14 How many other ones do you have that are like
15 that?
16 THE DEFENDANT: That are like that? Well --
17 THE COURT: How many requests for stipulated
18 facts -- judicial notice -- I keep saying stipulated facts
19 -- judicial notice are you requesting?
20 THE DEFENDANT: I'm not sure if I would describe
21 them all as like that. I have 22 in total that were
22 written down here. I actually have 2 more, so it would be
23 24 in total. We've gotten through 8, or a third of the
24 way through.
25 Just to -- the reason that this happened and the

1 reason I walked in here as a pro per and having done my
2 own research and attempting to come here and play by the
3 court's rules is that my understanding was that a judicial
4 notice was facts that are well known such that they don't
5 even necessarily require any sort of an evidentiary source
6 because they're just so widely accepted.
7 THE COURT: Accepted? That is true. Anything
8 that you've indicated so far does not meet that standard.
9 THE DEFENDANT: So I guess that's where I'm
10 trying to -- I don't want to say anything improper here.
11 For my perspective to say -- to make the statement
12 technological advancement has increased the vulnerability
13 of digital systems and created new challenges, in my mind
14 that is kind of an undisputed fact. Everyone's aware now
15 of artificial intelligence and its capabilities, the
16 capability for deep fake content. I mean, virtually
17 everyone has encountered some deep fake content at some
18 point on social media now. There are numerous examples,
19 all kinds of records of the vulnerability of digital
20 systems, especially as it pertains to this case.
21 THE COURT: Thank you.
22 Go ahead.
23 MR. PASKULOVICH: I don't mean to interrupt. I
24 don't even know if it's my place to be saying this, but
25 I'm not sure the defendant knows what these judicial

1 notices would do, whereas he's asking the Court to take
2 judicial notice, but the Court's not the trier of fact.
3 Is he intending for these to go to the jury? I just don't
4 know what his ultimate goal is.
5 THE COURT: Yes, I assume that's what you're
6 trying to do.
7 MR. PASKULOVICH: I'm trying to clarify that
8 before we go --
9 THE COURT: You want it to go to the jury,
10 correct? I just assumed that.
11 Thank you for bringing that to my attention.
12 THE DEFENDANT: It's my understanding that the
13 jury does see this.
14 THE COURT: Yeah.
15 THE DEFENDANT: My goal is to get it in front of
16 the court at large.
17 THE COURT: Why? I'm not the trier of fact.
18 You don't need to put it in front of me for any reason.
19 THE DEFENDANT: Well, it's also for the purpose
20 of having it to be seen by the jury.
21 THE COURT: Okay. So every single request that
22 you're making is so that the request -- so that that
23 document that you're referring to can be read to the jury
24 or introduced as an exhibit; is that what you're
25 indicating?

1 THE DEFENDANT: Correct.
2 THE COURT: Okay.
3 MR. PASKULOVICH: Okay. I just renew my
4 objection. On a -- not necessarily (inaudible) an
5 objection, but if everyone knows these things, the jury
6 will know that, but the jury's going to be instructed
7 they're only allowed -- arguments made by the lawyers are
8 not fact. They cannot consider arguments made by lawyers.
9 They cannot consider what the judge makes comments. The
10 jury instructions will specifically state what evidence
11 is, and evidence is exhibits that are admitted or
12 statements or testimony from witnesses.
13 THE COURT: That is true. That's how they're
14 going to decide the case, not from extraneous things out
15 there, okay? So only the evidence that is presented by
16 both sides. They're to apply the evidence to the facts to
17 the case and that's how they're going to make that
18 determination of your guilt or innocence, okay?
19 THE DEFENDANT: I understand that, your Honor,
20 and I have my own defense strategy as well where I intend
21 to actually discuss the evidence as it pertains to the
22 case --
23 THE COURT: You have a right to testify, of
24 course.
25 THE DEFENDANT: This is just supplementary. I

1 don’t know if I would call it an attempt to -- not a
2 safety net, but laying some kind of intellectual
3 foundation for the Court as it proceeds, just so that
4 people are aware of the possibilities. And that’s what I
5 thought that the judicial notice would be appropriate for.
6 That may not --
7 THE COURT: A statement, if you want to make a
8 statement regarding of something; is that what you’re
9 indicating? Of what specifically?
10 THE DEFENDANT: I’m sorry. Now I’ve gotten lost
11 in the wayside.
12 THE COURT: So you indicated you did one through
13 eight, okay. And what’s your next one about?
14 THE DEFENDANT: It’s funny that we got to this
15 one next because I feel like I already know how this one
16 will go. I figured this one would run into some
17 resistance, even if the other ones didn’t. Determinism
18 and free will, Robert Sapolsky, a renowned expert in
19 neuroscience, his neuroscience-based analysis argues that
20 free will may be an illusion and, if so, blame and
21 retributed punishment lose moral justification. My
22 summarized alternate to that is that scientific evidence
23 increasingly supports the idea that behavior is shaped by
24 biological and environmental factors, challenging judicial
25 notions and culpability.

1 THE COURT: Okay. That will be denied. That's
2 not relevant in this case and there's other -- again, it's
3 for the jury to decide and look at each witness and
4 determine their credibility. They're going to look at
5 you. They're going to look at all the witnesses presented
6 by the People, and that's what they're going to do, okay?
7 THE DEFENDANT: I understand that, your Honor.
8 I'm just proceeding with --
9 THE COURT: Okay. Go ahead.
10 THE DEFENDANT: -- what I have written down.
11 THE COURT: What's the next one?
12 THE DEFENDANT: It's like the ball's rolling
13 now, but I appreciate your patience in the matter.
14 Next, eleven, neuroscience or neuro justice and
15 judicial infrastructure. Non-evasive brand decoding
16 technology now allows the reconstruction of visual
17 imagery, internal speech, and emotion with remarkable
18 accuracy through AI-powered FMRI-EEG tools. Summarized
19 alternate, recent neuroscience breakthroughs now allow for
20 unprecedented insight into human thoughts, perceptions,
21 and emotions, raising new legal and ethical questions and
22 potentially standards of evidentiary burden.
23 THE COURT: Okay.
24 THE DEFENDANT: Particularly as it pertains to
25 the statute, it revolves by great deal around the

1 subjective emotional state of the complaining witness.
2 The statute is worded such that in order to prove it, you
3 have to -- they have to have been afraid. They must have
4 actually been afraid and a reasonable person must have
5 been afraid. Of course, there's other things besides
6 afraid, so I'm paraphrasing the statute. But in general
7 it relies on proving of an emotion -- of a subjected
8 emotional state.
9 There's technology now to provide the evidence
10 to decode brand signals to categorize emotions. Say, if
11 someone's afraid or happy or --
12 THE COURT: If you've got a witness that's going
13 to testify to any of this, that's fine, that can be
14 cross-examined, but this, as it relates to that, it isn't
15 -- I don't even know what the source is, but it can't be
16 cross-examined. Is it an article that you're talking
17 about?
18 THE DEFENDANT: This had several different
19 citations, and I apologize because of all of the requests
20 on here, for whatever reason my sources aren't down here.
21 THE COURT: First of all, if you don't have a
22 source, I'm not taking judicial notice of that. Again, if
23 you want to -- so anything -- please don't even address
24 anything that doesn't have a source on it, okay?
25 THE DEFENDANT: Okay. I will skip anything else

1 here that I see that doesn't have a source. It looks like
2 there's only one additional one that, for whatever reason,
3 the source didn't make it on there.
4 THE COURT: Okay.
5 THE DEFENDANT: For my last two at the end,
6 since we're discussing what this is appropriate for and
7 what it's not for, is this an appropriate mechanism? My
8 last two at the end pertaining more specifically to the
9 case at hand and just contradictions that exist in the
10 report as it's been presented to me. This is an
11 appropriate place to ask to take judicial notice of the
12 fact --
13 THE COURT: Judicial notice of a fact, what is
14 the fact?
15 THE DEFENDANT: That has to do with an
16 observable contradiction in the witness statement and the
17 case report that was provided to me.
18 THE COURT: You can do that on
19 cross-examination. If there's a discrepancy, then that's
20 how you would approach that.
21 THE DEFENDANT: Okay. Understood.
22 THE COURT: Okay?
23 THE DEFENDANT: Okay. Well, I'll just blow
24 through this. I can already see how this is going since
25 we're already in the middle of it. I'll just keep

1 reading. Looks like we're about halfway done.
2 And those last two I didn't have on the sheet
3 anyway. I was --
4 THE COURT: Okay.
5 THE DEFENDANT: -- adding them retroactively, so
6 we don't even have to do those.
7 THE COURT: Okay.
8 THE DEFENDANT: Thirteen, application of
9 artificial intelligence to behavioral modeling,
10 prediction, and influence. AI is capable of predicting
11 behavior with high accuracy as shown by major legal
12 prediction models and controversial influence campaigns
13 like Cambridge Analytica. The source for that is
14 journals.pols.org. Summarized alternate, artificial
15 intelligence and behavioral modeling can be used to
16 predict, influence, or manipulate individual behavior
17 based on large scale date profile.
18 THE COURT: That may be true, but I'm not going
19 to take judicial notice of that article.
20 THE DEFENDANT: I appreciate --
21 THE COURT: Okay. Thank you.
22 THE DEFENDANT: -- both of those statements,
23 your Honor.
24 Fifteen, vulnerability of data stored on social
25 media company service. From 2018 to 2024, Facebook,

1 a.k.a. Meta, experienced repeated breaches affecting
2 hundreds of millions of users, including plain text
3 password storage, exposed to private photos, and massive
4 unauthorized data access. Multiple reports coming from
5 tech front WIRED, the Associated Press, FTC, and The
6 Guardian. Summarized alternate to 15, data stored on
7 private company servers, particularly social media
8 platforms, is repeatedly shown to be vulnerable to
9 breaches, manipulation, or unauthorized access.
10 If I could just note that is significantly
11 pertinent to this case because when that warrant report
12 came back --
13 THE COURT: What is our source on that request?
14 THE DEFENDANT: I have multiple reports from
15 tech front WIRED, Associated Press, The Guardian, and the
16 FTC, which is the Federal Trade Commission. So I just
17 abbreviated the sources because there are so many
18 supporting that.
19 THE COURT: So is there a specific sentence? If
20 there's some -- what I'm sensing is you want to indicate
21 that this -- that Facebook or whatever evidence is being
22 entered may or may -- can be inaccurate. Is that correct?
23 Is that where we're headed with this?
24 THE DEFENDANT: I think if I were going to give
25 you a sentence that I think might be more palatable given

1 what you said, had any chance of being accepted, it would
2 be that it should be an indisputable fact that digital
3 evidence is not immutable. In other words, it can be
4 changed and it can be compromised, and just because there
5 is a brand on it --
6 THE COURT: So maybe we can cut through the
7 chase of all of this, and I don't know how the People feel
8 about this, but if there is one stipulated fact as it
9 relates to -- you need to give me the exact sentence and
10 we'll see if the People agree to it. What is it?
11 THE DEFENDANT: Just on the spot, if I could
12 make a constructive sentence, I'd say digital evidence --
13 evidence stored through -- digital infrastructure can be
14 vulnerable to manipulation.
15 MR. PASKULOVICH: Your Honor, I object. This is
16 the equivalent of the prosecution trying to stand up,
17 going on to cite about stalking and saying stalkers can
18 scare people. Showing up at someone's house without
19 consent can scare people. Showing up at someone from
20 middle school's mom's house --
21 THE DEFENDANT: I have an objection, your Honor.
22 THE COURT: Hang on. Hang on.
23 MR. PASKULOVICH: That's the same thing. There
24 are organizations out here on the Internet have
25 information generally, which I think is difficult in this

1 case. The defendant can represent himself. He has the
2 absolute right to, but we all have the same Rules of
3 Evidence, and the Rules of Evidence don't allow him to
4 bring in just generalized statements.
5 THE COURT: I know.
6 MR. PASKULOVICH: You have to bring the witness
7 from whatever the Associated Press that is. He has the
8 absolute right to subpoena witnesses. The prosecution can
9 help him subpoena witnesses if it's reasonable. He could
10 bring in that person from the Associated Press, call him
11 in his case in chief, and ask him that, but he doesn't get
12 to come in here and just cherry pick all this stuff that's
13 going to be, quote, judicial notice because the People
14 could bring in no witnesses and ask the Court to take
15 judicial notice as well, but that's not how it works.
16 THE COURT: And this is the issue, okay? They
17 have to prove their case beyond a reasonable doubt. It's
18 up to the People to prove that. If they cannot -- they
19 have to prove that it is -- the evidence is that valid,
20 and that's up to them as it relates to that.
21 So if you want to indicate, like as indicated,
22 want to bring in witnesses to indicate otherwise or place
23 doubt in the fact that there is some issues, you can do
24 that on cross-examination. Isn't it true that -- you can
25 ask the officer, isn't it true that this can be vulnerable

1 to, you know, manipulation? Those are questions you can
2 ask under oath while everyone is here, okay?
3 THE DEFENDANT: Correct, your Honor. Thank you,
4 your Honor. My only argument is that it is an
5 indisputable fact that evidence stored on digital
6 infrastructure can be manipulated. That's my position.
7 THE COURT: Okay.
8 THE DEFENDANT: That's why you should take
9 judicial notice --
10 THE COURT: And you can testify to that under
11 oath, right?
12 THE DEFENDANT: I suppose so, your Honor.
13 THE COURT: Okay. Okay.
14 THE DEFENDANT: I also just wanted to object to
15 the way that the prosecution framed their argument, the
16 flavor there just now, talking about how the prosecution
17 can come in here --
18 THE COURT: Okay. I'm going to stop you with
19 that because there's no motion right here. I'm not the
20 trier of fact; the jury is. They didn't hear -- they're
21 not here. I'm going to bring them in just about five
22 minutes.
23 If anything else is related, request for
24 judicial notice along those lines, again, you know how it
25 can be brought in, through yourself, through witnesses,

1 through cross-examination of the People's witnesses. That
2 all can be done to put doubt in the jurors' mind as to the
3 reliability of the evidence. That's the point of a trial,
4 okay, not a magazine article or some statistic that is not
5 -- that is not necessarily provable, okay?
6 So I'm assuming that all your other things are
7 along that line. So if there's nothing further, anything
8 else before we bring the jury in?
9 THE DEFENDANT: You don't want me to finish the
10 last four that were on here?
11 THE COURT: If they're along the same lines,
12 there's really no need for that, sir.
13 THE DEFENDANT: Okay.
14 THE COURT: Okay? So with that, I'm assuming
15 that we can bring the jury in.
16 THE DEFENDANT: I was just going to ask, your
17 Honor, if we could have a very brief pause of maybe 15
18 minutes or so just to freshen up my water, use the
19 restroom, review my jury selection strategy, and then
20 return and proceed.
21 THE COURT: We're going to bring the jurors in.
22 We'll give you about ten minutes, okay?
23 THE DEFENDANT: Okay.
24 THE COURT: Thank you.
25 (At 10:38 a.m., court recessed.)

1 (At 10:47 a.m., court reconvened.)

2 THE COURT: Back on Parton, 24-07808. Your

3 appearances, please.

4 MR. PASKULOVICH: Good morning, your Honor.

5 Kyle Paskulovich appearing on behalf of the People.

6 THE COURT: Sir, your name?

7 THE DEFENDANT: Fox Parton.

8 THE COURT: And standby counsel.

9 MR. DOWNER: Harold Downer as standby counsel

10 only for Mr. Parton.

11 THE COURT: Thank you.

12 So the one thing we didn't discuss was

13 cross-examination directly of Ms. Walters. What is her

14 married name?

15 MR. PASKULOVICH: Your Honor, her maiden name --

16 I mean, married name is Kennard.

17 THE COURT: Kennard?

18 MR. PASKULOVICH: Yes. Let me just confirm the

19 spelling.

20 THE COURT: Okay. And so under the

21 circumstances, the fact that this is a stalking issue and

22 the issues that have been presented at the PPO, the

23 trepidation of Ms. Kennard to specifically have the

24 defendant question her, I am going to -- I think it is

25 appropriate that the actual questions being asked be done

1 by standby counsel; however, you do have a right to
2 confrontation of this witness. It doesn't mean that you
3 can actually ask those questions. So if you want to ask
4 -- state any questions, write anything out that you want
5 standby counsel to ask, you absolutely can do that. I
6 would assume you'll want to since you're representing
7 yourself. Have a list of questions that you want standby
8 counsel to ask.
9 I'll also allow you to confer with standby
10 counsel after that for any follow-up questions based upon
11 that. But the actual questioning will be done by standby
12 counsel but they will be your questions. Do you have any
13 questions about that?
14 THE DEFENDANT: Yes, your Honor. Thank you.
15 Two points of clarification --
16 MR. DOWNER: When you're talking to the Court
17 you have to stand up.
18 THE DEFENDANT: Thank you, standby counsel.
19 MR. DOWNER: You're welcome.
20 THE DEFENDANT: Two points of clarification.
21 One, we're speaking about the procedure when it comes to
22 cross-examining the witness and you say that using standby
23 counsel to ask the questions. We're having a discussion
24 about this. I'm not under any impression that that
25 portion of the trial is happening today.

1 THE COURT: Correct. Oh, yes. Correct. So
2 you'll have all -- and we're going to select a date.
3 Actually, we need to do that as well, and I'm assuming
4 that was going to be on Tuesday; is that correct? Is that
5 good for your witnesses?
6 MR. PASKULOVICH: That works for me, yes.
7 MR. DOWNER: I'm not available Tuesday, your
8 Honor. I'm assigned Hartig in Troy District Court all day
9 that day.
10 THE COURT: Oh, Wednesday is your day.
11 MR. DOWNER: Correct.
12 THE COURT: Okay. And you're available
13 Wednesday.
14 MR. PASKULOVICH: Yes, your Honor.
15 THE COURT: Okay. It's Wednesday, the 21st. So
16 you'll have between today and the 21st to write down all
17 your questions for standby counsel to ask.
18 THE DEFENDANT: I don't think I have any
19 objection to that date, your Honor. I'm just checking
20 very quickly to make sure.
21 THE COURT: Okay.
22 MR. DOWNER: And while he's looking, if I may
23 voir dire -- I don't know why I asked that. If I can
24 inquire with your Honor. I want to make sure I understand
25 entirely my role and limits with your order. It's my job

1 to ask the questions Mr. Parton wishes me to ask.
2 THE COURT: Correct.
3 MR. DOWNER: If he wishes me to ask a question
4 that I do not believe to be appropriate for some reason
5 but he wants me to ask it, should I still ask that, or how
6 should that -- if it arises, how should that be addressed?
7 THE COURT: I suppose that you would ask the
8 question and if the People want to object to it, that
9 would be the appropriate avenue.
10 MR. DOWNER: Okay. And am I -- should I and is
11 the Court expecting me to ask questions that I would ask
12 if I was his counsel, or am I purely limited to what he
13 directs me to ask?
14 THE COURT: Just to what he is requesting.
15 THE DEFENDANT: May I introject, your Honor?
16 THE COURT: Yes.
17 THE DEFENDANT: Because I think the confusion
18 here stems from the fact that he's limited counsel. He's
19 explained to me that his role is to simply provide
20 assistance in navigating court procedure, not to advise me
21 legally anymore at that point.
22 I guess it gets down to a matter of if I'm
23 giving him my questions for cross-examining and you're
24 stating that he should just take those questions and go
25 with them --

1 THE COURT: He’s reading for you, basically, is
2 what he’s doing.
3 THE DEFENDANT: Right. My issue lies with is it
4 a matter of legal advice or is it a matter of procedure to
5 tell me if it’s procedurally improper to ask a question
6 that he knows is going to be objected to and the objection
7 would be sustained that he warned me ahead of time with
8 his expertise.
9 MR. DOWNER: If I may, Mr. Parton. That’s what
10 my question was. The judge directed me that if you ask --
11 tell me to ask a question that I think should not be asked
12 and you say, no, I want to ask, I’m directed to ask that
13 still and it will be up to Mr. Paskulovich to object if
14 it's inappropriate.
15 THE DEFENDANT: That’s what I’m clarifying. Is
16 he at least allowed to provide a disclaimer? I understand
17 I’m allowed to ask him to ask it anyway, but he is allowed
18 to say if he doesn’t believe that the question is --
19 THE COURT: No.
20 THE DEFENDANT: -- proper?
21 THE COURT: No. That’s not his role. If you
22 want to ask a question, he’s going to read your question.
23 We’ll go through the normal procedure. If it’s
24 objectionable it doesn’t matter, really, at this point I’m
25 assuming what he thinks. He’s given you guidance already

1 in that regard. So if you want to ask a question, you can
2 ask it. Mr. Paskulovich will object if he thinks it's
3 appropriate and I'll make a ruling as I believe is
4 appropriate.
5 THE DEFENDANT: Okay.
6 THE COURT: Okay.
7 THE DEFENDANT: My final clarification was I
8 believe when we initially were talking about this and Mr.
9 Downer was actually still at that time officially my
10 counsel, he made reference to providing an additional jury
11 notice because of the implied threat that I would have to
12 have a buffer in order to interview her, that there be
13 some sort of a notice to the jury as to --
14 THE COURT: You mean a jury instruction?
15 THE DEFENDANT: A jury instruction.
16 THE COURT: We can address that. Let's bring
17 the jury in. We can address that. I'm going to indicate
18 at some point in time that I have instructed the attorneys
19 to read these questions.
20 THE DEFENDANT: Because I think it's important
21 for the jury to understand that in the details of this
22 case, there's no actual threat or threatening behavior
23 alleged in any of the evidence or the testimony.
24 THE COURT: Thank you.
25 Bring the jurors in.

1 MR. PASKULOVICH: Last thing, just to avoid an
2 issue. Because there's a married name of Kennard, I'd
3 move for that complaint just to reflect Brianna Walters
4 and/or Brianna Kennard.
5 THE COURT: Now known as?
6 MR. PASKULOVICH: Now known as, just so that
7 there's no technical --
8 THE COURT: And how do you spell that?
9 MR. PASKULOVICH: K-E-N-N-A-R-D.
10 THE COURT: Okay. Okay. I will amend the
11 complaint to read that as well.
12 MR. PASKULOVICH: Thank you.
13 THE COURT: I'm not cutting you off as it
14 relates to that issue. We just -- we need to bring these
15 jurors in, okay? They've been waiting for a couple hours.
16 THE DEFENDANT: Yes, your Honor.
17 THE COURT: And then we'll address that, if
18 necessary, after. Thank you.
19 MR. PASKULOVICH: Thank you.
20 (At 10:55 a.m., prospective jurors enter
21 courtroom.)
22 THE COURT: Please be seated.
23 Okay. Welcome, everyone. Thank you first and
24 foremost for your patience. My name is Judge Carniak. We
25 have been working diligently here since 8:30 this morning.

1 We didn't want you to think that we just strolled in here
2 at 10:00 when we're drinking coffee and eating donuts
3 while you were waiting downstairs. So we've been trying
4 to make this as efficient and effective as possible. So
5 thank you for your patience and for your continued
6 patience.
7 I know that the jury experience -- first of all,
8 before I even go any further, can everybody hear me okay?
9 JURORS: Yes.
10 THE COURT: I have a pretty loud voice, but if
11 at any time you cannot hear anyone, especially when we
12 start the jury selection process, just raise your hand,
13 especially the parties or the attorney may have their
14 backs toward you. So we want to make sure you can hear
15 everything okay. This is especially important because
16 some of the questions will be asked over and over again in
17 this voir dire process.
18 First of all, I want to welcome you to court. I
19 know that this may be a new experience for many of you,
20 but it's -- obviously the jury is an important part of the
21 court. The right to a jury trial is an ancient tradition
22 and part of our heritage. The law says that both sides, a
23 person accused of a crime and the prosecution, have the
24 right to a trial not by one person but by a jury of their
25 peers.

1 Jurors must be free as humanly possible from
2 bias, prejudice, sympathy for either side. Each side,
3 excuse me, is entitled to jurors who keep an open mind
4 until the time comes to decide the case.
5 So as I started to explain to you, the jury
6 trial begins with jury selection, and the purpose of this
7 is to obtain information about you that will help choose a
8 fair and impartial jury to hear the case on both sides.
9 During the jury selection, the lawyers and the defendant
10 accused of this case as well as myself may ask you
11 questions. This process is called voir dire. The
12 questions are meant to find out if you know anything about
13 the case. Also we need to find out if you have opinions
14 or personal experiences that might influence you for or
15 against the prosecution or the defense or any of the
16 witnesses. One or more of these things can cause you to
17 be excused in this particular case even though you may
18 otherwise be qualified to act as a juror.
19 The questions may probe deeply into your
20 attitudes and beliefs and experiences. They are not meant
21 to unreasonably pry into your private life. The law
22 requires that we get this information so that an impartial
23 jury can be selected.
24 Again, if you don’t hear or understand anything,
25 don’t hesitate to speak up, and you should answer

1 truthfully and completely. Please also, even if a
2 question hasn't been specifically asked of you, feel free
3 to speak up. We can always make that determination of
4 whether we think it's important or not.
5 So with that, I'll explain a little bit more of
6 the voir dire process. You may be excused from serving as
7 a juror in one of two ways. First I may excuse you for
8 cause, that is, I'm going to decide that there's a valid
9 legal reason why you cannot or should not serve on this
10 case, or one side or the other may excuse you without
11 giving any reason for doing so. This is called a
12 peremptory challenge. The law gives each side the right
13 to excuse a certain number of jurors in this way. If
14 you're excused you should not feel bad or take it
15 personally. As I explained before there simply may be
16 something in your background that causes you to be excused
17 from this particular case.
18 So before we start asking jurors and selecting
19 them to sit as a potential juror, I'm going to have you
20 all stand and administer what is called the Oath of Voir
21 Dire. So if you please could stand and raise your right
22 hand.
23 Do each of you solemnly swear or affirm that you
24 will truthfully and completely answer all questions about
25 your qualifications to sit as jurors? If so, answer, I

1 do.

2 JURORS: I do.

3 THE COURT: Thank you. Please be seated again.

4 You've already met my law clerk, Caitlin. And

5 this is my court recorder, Kelli. I don't think any of us

6 know each other. I kind of check a little bit ahead of

7 time.

8 But I also want to indicate that the case that

9 we're selecting is a criminal case. It's involving the

10 charge called stalking, which I'm going to explain to you

11 a little bit more in detail. The charge has been made

12 against the defendant, who is Fox Parton, who is seated

13 here today, and the defendant's lawyer as well.

14 I'm going to ask each side to introduce

15 themselves and their role. Counsel, if you could begin,

16 that would be great.

17 MR. PASKULOVICH: Hi. My name is Kyle

18 Paskulovich. I'm an assistant prosecuting attorney. I

19 work for the Oakland County Prosecutor's Office. I'll be

20 here on behalf of the prosecution in this case. The

21 detective, the officer in charge of the case, is Detective

22 Miguel Mendez, and the witnesses I plan on calling today

23 are Brianna Kennard, formerly Brianna Waters (sic),

24 Detective Nathan Bodendorfer, Deputy Nicholas Hill, and

25 Gavin Kennard.

1 THE COURT: Thank you.
2 Does anybody know the assistant prosecuting
3 attorney or any of the potential witnesses?
4 Okay. Mr. Parton is representing himself, but
5 he does have standby counsel. If you would like to
6 introduce yourself, your standby counsel, and any
7 potential witnesses that you may be calling.
8 THE DEFENDANT: Thank you, your Honor. I just
9 wanted to clarify, because he also said witnesses that
10 he's calling today, but we had already spoken earlier
11 about how that's --
12 THE COURT: Those are potential witnesses that
13 he may be calling.
14 THE DEFENDANT: Today.
15 THE COURT: No, not today. We're just selecting
16 a jury.
17 THE DEFENDANT: Correct. That was my
18 understanding. He said today, so that's what threw me
19 off.
20 THE COURT: Okay. Go ahead. If you could
21 introduce yourself.
22 THE DEFENDANT: Thank you.
23 Hello. My name is Fox Parton. As you know, I'm
24 accused of stalking.
25 Am I allowed to discuss --

1 THE COURT: No. No. You're just introducing
2 yourself, your standby counsel, his name, and any
3 potential witnesses to see if they know you or anyone else
4 that you may be calling as a witness.
5 THE DEFENDANT: Okay. As I said, my name is Fox
6 Parton. This is my standby counsel. His name is Harold
7 Downer. As far as witnesses, I don't have any additional
8 witnesses besides those listed by the prosecution that I
9 may or may not call.
10 THE COURT: Thank you.
11 THE DEFENDANT: Thank you for your time.
12 THE COURT: Okay. And does anybody know
13 Mr. Parton or standby counsel for Mr. Parton?
14 Okay. We're off to a good start.
15 We think that the trial is going to last one
16 day. It may go a little bit longer. The day that we
17 selected is next Wednesday. So we're just selecting the
18 jury today and then you're going to come back on
19 Wednesday.
20 Now, I know that this is not convenient for
21 anyone and it's taking a day from you. If there's a
22 specific reason, you have an exam at the university, you
23 have a prepaid vacation, you have a surgical procedure, if
24 there's something specific that you cannot sit as a juror
25 on Wednesday, we'll recall you back. You'll go through

1 this whole process the next month or the month after. So
2 Wednesday and potentially a half a day on Thursday. Is
3 there any reason that you cannot sit as a juror?
4 Yes?
5 UNIDENTIFIED JUROR: I have an IEP appointment
6 for my son, the Rochester school district.
7 THE COURT: When is that?
8 UNIDENTIFIED JUROR: It's Wednesday.
9 THE COURT: Can you reschedule that?
10 UNIDENTIFIED JUROR: Potentially.
11 THE COURT: Okay. All right. I guess I'd ask
12 you do you want to sit through this procedure again on
13 another date and time or do you want to make a -- schedule
14 -- I get it. We all have appointments and things that are
15 going on.
16 UNIDENTIFIED JUROR: I'll see if I can
17 reschedule it.
18 THE COURT: Okay. All right.
19 Health questions, we can accommodate pretty much
20 everybody's health issues, but if there's something
21 specific, we'll allow jurors to stand if they're having
22 issues with their back or their legs or something like
23 that. But is there anything that would prevent you to sit
24 as a juror? We can take breaks as needed. Everybody --
25 this is a pretty healthy group it looks like? Okay.

1 Great.

2 Okay. As I just indicated to you a few moments

3 ago, this is a criminal case. The paper used to charge

4 the defendant with a crime is called the Information. In

5 this case it alleges and charges that the defendant, Fox

6 Parton, did on or about June 27, 2024, to December 24,

7 2024, did engage in a willful course of conduct involving

8 repeated or continuing harassment of Brianna Walters, now

9 known as Brianna Kennard, the conduct being such that

10 would cause a reasonable person to feel frightened and

11 harassed and such conduct did cause Brianna Walters, now

12 known as Brianna Kennard, to feel frightened and harassed.

13 You should clearly understand that what I've

14 just read is not evidence. This is read in every criminal

15 trial so that the defendant and the jury can hear the

16 charges. You must not think that this is evidence of his

17 guilt or that he must be guilty because he has been

18 charged, and that is because a person accused of a crime

19 is presumed to be innocent. This means that you must

20 start with the presumption that the defendant is innocent.

21 This presumption continues throughout the trial and

22 entitles the defendant to a verdict of not guilty unless

23 you are satisfied beyond a reasonable doubt that he is

24 guilty.

25 Every crime is made up of parts called elements.

1 The prosecution must prove each element of the crime
2 beyond a reasonable doubt. The defendant is not required
3 to prove his innocence or to do anything. If you find
4 that the prosecutor has not proven every element beyond a
5 reasonable doubt, then you must find the defendant not
6 guilty. A reasonable doubt is a fair and honest doubt
7 growing out of the evidence or the lack of evidence. It's
8 not merely an imaginary or a possible doubt but a doubt
9 that's based upon reason and also upon common sense. A
10 reasonable doubt is just that, a doubt that's reasonable
11 after careful and considered examination of the facts and
12 circumstances of this case.
13 So with that we are going to start our voir dire
14 process and select jurors. So my law clerk is going to
15 call your name. It's done randomly through lot, and when
16 you hear your name called, the first person, I'm going to
17 ask them to sit in the front row in the jury box and the
18 seat furthest away from me.
19 Go ahead.
20 COURT CLERK: Okay. First person is going to be
21 Diana Wagner.
22 MS. WAGNER: Over here?
23 COURT CLERK: Yep. So you can walk up the ramp
24 and then --
25 THE COURT: Front row, furthest away from me.

1 COURT CLERK: Number two is Ann Ross. Number
2 three is Carol Evola. Number four is Diane Bowyer.
3 Number five is Simon Hodister. Number six is Timothy
4 Wilson. And number seven is Marc Fowler.
5 THE COURT: Okay. While the parties are looking
6 at the questions, they're actually questionnaires that you
7 filled out, maybe so long ago you don't even remember
8 filling those out. They're just basic information you've
9 given us about your background, about what you do for a
10 living, and some other basic questions that you've
11 answered. They're going to follow up, probably, on those
12 questions.
13 But before we get to that point, as you heard me
14 indicate just a few moments ago, this is a case, the
15 charge is stalking. So I'm going to ask if anybody has
16 ever, first of all, sat on a jury before. If they have,
17 could you please raise your right hand.
18 Okay. Just two, three people? Okay. Keep your
19 hands raised. Of those people that have their hands
20 raised, how many people sat on a criminal case? Criminal
21 case.
22 So three, four. Of that, was it involving a
23 case of stalking? Anybody have a case involving stalking?
24 Okay. All right. So no one's sat on a case
25 exactly of this type. Okay. Just wanted to confirm that.

1 And I think we can get started whenever we want.
2 Go ahead.
3 MR. PASKULOVICH: My name's Kyle again. Thank
4 you all for being here today. Have any of you guys known
5 someone that's been a victim of stalking? Juror seated in
6 number six (sic)?
7 JUROR NO. 1: Yes, myself.
8 MR. PASKULOVICH: And did you report that to the
9 police?
10 JUROR NO. 1: Yes.
11 MR. PASKULOVICH: And did that case ultimately
12 go to trial?
13 JUROR NO. 1: No, it didn't end up going to
14 trial.
15 MR. PASKULOVICH: Was there criminal charges?
16 JUROR NO. 1: No, but in the workplace. That
17 person was accused in the workplace of harassment.
18 MR. PASKULOVICH: Okay. Do you feel that you
19 were treated fairly by the police when you made the
20 report?
21 JUROR NO. 1: No.
22 MR. PASKULOVICH: No? Was that here in Oakland
23 County?
24 JUROR NO. 1: Yes.
25 MR. PASKULOVICH: Would you be able to treat the

1 police involved in this case fairly, the prosecution's
2 case fairly, even though you may not have had the best
3 experience when you reported it?
4 JUROR NO. 1: Honestly, probably not.
5 MR. PASKULOVICH: No?
6 JUROR NO. 1: I'm having a hard time right now.
7 MR. PASKULOVICH: I appreciate your honesty with
8 that.
9 Has anyone else, family member or friend, been a
10 victim of stalking or been accused of stalking?
11 THE COURT: I'm going to interrupt you for just
12 a second, and I think I did mention this to the jury pool,
13 but, again, these questions, if a juror's removed, you
14 will likely be asked some of these same questions, and to
15 expedite things, the parties will indicate, have you heard
16 all the questions that I've asked? So just -- although
17 you don't have to raise your hand, just keep this in mind
18 so that we can make this process go a little bit quicker.
19 Sorry. Go ahead.
20 MR. PASKULOVICH: Sure. And I think I said in
21 the beginning, juror in seat no. 6. You're a juror in
22 seat no. 1. So I just wanted to correct that.
23 THE COURT: Yes. Okay.
24 MR. PASKULOVICH: Caught that right after I said
25 it.

1 Have any of you been accused of a crime
2 previously, had a family member or a friend accused of a
3 crime, or had any dealings with police officers in Oakland
4 County, Oakland County Sheriff's Office specifically?
5 Sure. You want to go ahead and state your
6 experience? Good, bad, or what was the experience?
7 JUROR NO. 6: Both.
8 MR. PASKULOVICH: Will you be able to treat the
9 police who testify in this case fairly?
10 JUROR NO. 6: Yeah.
11 MR. PASKULOVICH: All right. Obviously you
12 don't have to answer, juror in seat no. 1. I know it's
13 personal to you. But do any of you have an idea of what
14 stalking means under the law? What would you consider
15 stalking to be, juror in seat no. 7?
16 JUROR NO. 7: Unwanted following of a person and
17 making them feel intimidated or scared.
18 MR. PASKULOVICH: Sure. Do you think that
19 stalking could also be just communications that are
20 unwanted, or does it have to be physical? You're shaking
21 your head? Is that a yes, you think it could be
22 communications?
23 JUROR NO. 2: Yes, text messages, e-mails, phone
24 calls, all that stuff.
25 MR. PASKULOVICH: Sure. So the judge is going

1 to give you specific instructions of what stalking means.
2 It can be contact that is not consented to or it could be
3 physical things. So I'd ask you all to keep an open mind
4 with that.
5 Can you understand why someone would not want to
6 go to the police in a case of stalking? Any of you?
7 Those of you shaking your head? Juror in seat no. 4?
8 JUROR NO. 4: Yeah. I mean, I would think they
9 might not go to the police if they thought they wouldn't
10 be believed or if nothing could be done about it.
11 MR. PASKULOVICH: Sure. You think someone would
12 have to necessarily contact the police every time they get
13 contact that makes them scared or uncomfortable? If
14 someone doesn't contact the police, it doesn't necessarily
15 mean it's not true?
16 JUROR NO. 4: No.
17 MR. PASKULOVICH: All right. Have any of you
18 had any experience with the Oakland County Prosecutor's
19 Office, good or bad?
20 Okay. What about with this court in general, if
21 you had a court case here before Judge Carniak, just in
22 general, whether it be criminal or not criminal? No?
23 So if someone who is a victim of a crime and
24 they come in and have to testify, can you understand why
25 it would be uncomfortable for them to come to court and

1 testify in front of a group of random people about their
2 experience? Just because they don't necessarily react the
3 same way than maybe you would react in the same situation,
4 does that necessarily mean that they're not believable?
5 Would you judge someone for not having the same reaction
6 that you may deem is the way someone should react to
7 traumatic event? Would you all agree that people can
8 react to things in different ways?
9 I guess, think if something happened in December
10 of last year, or even January of last year. If you told
11 someone the story of what happened in January and then
12 again over a year later tell someone the story of what
13 happened, do you think it would be the same exact
14 reiteration of events? Do you think someone would say the
15 story the exact same way or the details you'd leave out on
16 accident or you actually include the next time? If
17 someone doesn't tell the story the same way, same exact
18 way twice, does that necessarily mean they're being lied
19 -- they're not being truthful or they're lying in your
20 mind?
21 JUROR NO. 6: Yeah.
22 MR. PASKULOVICH: You think that does mean
23 they're lying?
24 JUROR NO. 6: Yeah. 'Cause in my opinion if
25 something happens, you're going to remember exactly how it

1 happened.

2 MR. PASKULOVICH: Sure. Do you think that being

3 nervous telling someone who you don't necessarily trust or

4 a random person, maybe if it's a female telling an adult

5 male cop or older male cop, maybe them being nervous would

6 cause them to not remember every single detail?

7 JUROR NO. 6: Shouldn't.

8 MR. PASKULOVICH: Okay. Has there ever been a

9 situation where you tell a story or you tell an important

10 plan or event, something, and you get home and you're,

11 like, darn it, I forgot to give this important detail?

12 You have a doctor's appointment and you're telling them

13 all the certain things that you want to tell them and you

14 get home and you forgot one thing that you've been meaning

15 to tell them, maybe the thing you made the appointment

16 for.

17 JUROR NO. 6: Can't picture it.

18 MR. PASKULOVICH: Nothing like that's ever

19 happened to you? You go to the grocery store because you

20 want ramen noodles, and you go there and you rack up a

21 $200 bill full of items in your cart and you don't get the

22 one thing you went to the grocery store. That happens to

23 me all the time.

24 JUROR NO. 6: I rarely ever grocery shop, so --

25 MR. PASKULOVICH: Maybe it's just me, but I

1 always go and end up getting a whole bunch of stuff I
2 don't need, forget the one thing I wanted. But I
3 appreciate your honesty with that.
4 Do any of you feel uncomfortable being here
5 today in general, kind of nervous?
6 JUROR NO. 1: I do now, given the situation.
7 MR. PASKULOVICH: I totally understand that.
8 Thank you for telling me that.
9 Did you raise your hand? Someone else raise
10 their hand?
11 UNIDENTIFIED JUROR: No, it was a scratch.
12 MR. PASKULOVICH: Okay. Anyone else a little
13 nervous? Go ahead.
14 JUROR NO. 3: (Inaudible).
15 MR. PASKULOVICH: I'm sorry?
16 THE COURT: I'm sorry?
17 JUROR NO. 3: I mean, it's just nerves.
18 MR. PASKULOVICH: Sure. I'll be honest. I'm
19 always nervous every time I get up here. So you're not
20 alone if any of you are. It's always uncomfortable. I
21 hate putting people on the spot, but it's kind of I have
22 to to get something.
23 If the law -- if Judge Carniak instructs you
24 what the law is and you don't necessarily agree with the
25 law, you think it's a bad law, you think it's stupid, will

1 you still be able to follow the law as Judge Carniak tells
2 you? You'll hold any of your own personal opinions aside
3 and just follow directly as the judge tells you to follow
4 it, instructs you to follow the law. Everyone agree that
5 they can follow the law?
6 And there's going to be a lot of things. I'm
7 going to make arguments. Defendant can make arguments.
8 He can say a lot of different things, but Judge will tell
9 you that my commentary, all arguments I make, what the
10 defendant says, that's not evidence. She'll instruct you
11 what evidence is and Judge will instruct you evidence is
12 through sworn witness testimony, so not what I'm saying,
13 sworn witness testimony or admitted exhibits; and then you
14 have to -- you only use evidence to decide the case.
15 Can't use my commentary, can't use the defendant's. Are
16 you all willing to do that, just follow exactly what Judge
17 tells you to do, and that's only to use evidence when
18 deciding the case?
19 Is there anything that any of you in the jury
20 think that would be important for me to know in terms of
21 if you can be a fair and impartial juror? I know we've
22 talked a little bit about juror in seat no. 1. Is there
23 anything else that you think that is important for me to
24 know in your ability to be fair with this case? Because I
25 want the case to be fair not only for me, prosecution, on

1 behalf of the People of the State of Michigan, but also
2 for the defendant. It's important that both of us get a
3 fair trial. Anything you think I'm missing or you think
4 it'd be important for me to know? You can tell me now.
5 All right. Well, I appreciate the opportunity
6 to ask you some questions. I'm sorry for putting you on
7 the spot. I thoroughly hate being put on the spot, but I
8 had to do it.
9 THE COURT: Thank you.
10 Go ahead, Mr. Parton. Do you have any
11 questions?
12 THE DEFENDANT: Your Honor, permission to
13 approach?
14 THE COURT: With opposing counsel, you mean?
15 THE DEFENDANT: No. Permission to approach the
16 bench.
17 THE COURT: Yes.
18 (At 11:18 a.m., an off-the-record discussion was
19 held at the bench.)
20 (At 11:19 a.m., court recessed.)
21 (At 11:20 a.m., court reconvened.)
22 THE DEFENDANT: Thank you, your Honor.
23 THE COURT: You're welcome. And whenever you're
24 ready, you can ask the jurors questions.
25 THE DEFENDANT: Hello, ladies and gentlemen of

1 the jury. Once again, I'm Fox Parton. I'm the defendant
2 here, and I apologize for that. I've got a small bladder
3 and it was going to be really distracting to me if I had
4 to do this without using the restroom the entire time.
5 That being said, my first questions, do you
6 understand that in our system a defendant starts off
7 legally presumed innocent? There's no issue there.
8 Can you commit to holding the government to its
9 legal burden of proof beyond a reasonable doubt, no
10 reasonable doubt whatsoever?
11 Can you honestly say you would wait to hear all
12 of the evidence before forming an opinion? In other
13 words, if evidence came out and you said that -- you
14 formed an opinion based on that and didn't wait until all
15 of the evidence has been before you to form your opinion
16 based on it as it came in.
17 JUROR NO. 1: Given my situation, I would have a
18 hard time. I'm just being honest.
19 THE DEFENDANT: Thank you. And it's one, two
20 three -- you're juror one.
21 Are you aware that a defendant does not have to
22 prove anything or testify in their own defense?
23 And we already know you're not familiar with the
24 parties involved.
25 I believe part of this was asked, but I'll ask

1 it one more time. Do you have any professional or
2 personal ties to Oakland County courts or law enforcement
3 or to any court of law enforcement in general outside of
4 Oakland County?
5 JUROR NO. 7: I have two sons that are lawyers.
6 THE DEFENDANT: Lawyers? I don't really know
7 what to make of that.
8 THE COURT: There's another, juror no. 2.
9 JUROR NO. 2: Yeah. I have a -- my neighbor is
10 a magistrate in Oakland County.
11 THE DEFENDANT: Okay. You have a close
12 relationship with that neighbor?
13 JUROR NO. 2: I've known him for 20-some years,
14 yeah.
15 THE DEFENDANT: Okay. All right. Thank you for
16 letting me know.
17 Are you aware that with current technology it's
18 easy to fabricate convincing screenshots or online
19 messages and send these?
20 JUROR NO. 6: Could you repeat that?
21 THE DEFENDANT: Are you aware that with current
22 technology, like artificial intelligence, we've all heard
23 of deep fakes, it's very easy to fabricate convincing
24 screenshots or online messages?
25 JUROR NO. 6: Yeah.

1 THE DEFENDANT: Do you assume that you could
2 evaluate digital messages effectively or screenshots of
3 digital messages, knowing how simple it is to edit or fake
4 them?
5 JUROR NO. 6: Repeat that one?
6 THE DEFENDANT: Do you assume that you could
7 evaluate digital messages or screenshots of digital
8 messages effectively, knowing how simple it is to edit or
9 fake them? In other words, to use a photo shop to create
10 a screenshot, say, these messages are here but that's the
11 only evidence that something happened.
12 JUROR NO. 6: I don't know if I could tell the
13 difference.
14 THE DEFENDANT: Have you ever encountered a fake
15 or spoofed online account?
16 JUROR NO. 6: Yeah.
17 THE DEFENDANT: Do you understand that
18 screenshot evidence can be incomplete, selectively edited,
19 or manipulated?
20 Would you need to see proof that an account was
21 actually created and operated by a specific person before
22 accepting communications alleged to have come from that
23 person as having actually come from them? In other words,
24 if somebody says this account sent messages to this
25 person, would you need to see proof that that account

1 actually belonged to the person in question before you
2 would say that they had communicated with someone, as in
3 proof that somebody actually had access to an account that
4 messaged someone in order to tie that person to the crime?
5 Okay. Do you know what a computer server is?
6 Are you familiar with the concept of a computer server?
7 Do you believe that conversation data stored by
8 Meta, commonly known as Facebook, LinkedIn, etcetera, is
9 impossible to change after it's been stored?
10 JUROR NO. 6: I don't know.
11 THE DEFENDANT: Yes? No? You do or don't
12 believe that, like, it's impossible to change it, like if
13 there's data on Facebook or LinkedIn, any data, not just
14 conversation data but any data that's stored within their
15 infrastructure, do you assume that it's impossible for
16 somebody to change that after it's been saved? I see you
17 shaking your head.
18 Are you aware that there have been publicized
19 incidents where employees at social media companies like
20 Facebook were accused of accessing or modifying user
21 account data without authorization, including the CEO of
22 Facebook himself?
23 Knowing that, do you believe that you would be
24 able to critically evaluate social media evidence and not
25 automatically assume it's accurate just because it came

1 from a platform like Facebook?

2 I know they're kind of difficult questions. I

3 appreciate you being here to hear them.

4 I guess I'm just a little bit confused. It

5 seems like I'm stumping them a lot. So I'm not getting,

6 like, a very, like, convincing yes or no. I don't need to

7 get a yes or no from an individual, do I?

8 THE COURT: That's up to you.

9 THE DEFENDANT: Okay. Well, I suppose that -- I

10 can compel them to answer the question.

11 THE COURT: You can ask a follow-up question if

12 that's helpful.

13 THE DEFENDANT: Okay.

14 THE COURT: Or ask a specific juror a question.

15 THE DEFENDANT: But they have the right not to

16 answer.

17 THE COURT: No. No. They need to answer the

18 questions.

19 THE DEFENDANT: Oh, okay. So we said are you

20 aware that there have been publicized incidents where

21 employees of social media companies like Facebook were

22 accused of accessing or modifying user account data with

23 authorization. You nodded your head. None of you have

24 heard about stuff like that? You haven't heard about

25 those instances? You have? Okay.

1 Well, knowing that or being aware of that, as of
2 this point, do you believe that or assume that you would
3 be able to critically evaluate social media evidence
4 without automatically assuming it's accurate just because
5 it came from a platform on Facebook or LinkedIn?
6 Are you aware that police reports often contain
7 summaries, assumptions, or errors based on limited
8 information at that time?
9 Can you critically assess police statements
10 understanding that officers sometimes rely on what others
11 say rather than firsthand evidence, which can sometimes
12 misrepresent situations or suspected realities as though
13 they are known to be true? I'll give you an example.
14 Like in a case where somebody is presumed innocent until
15 proven guilty, but in a police report they're right off
16 the bat referred to as a stalker and the complaining
17 witness is referred to as a victim based on what the
18 officer heard the complaining witness say. So that
19 language goes into the report, but that doesn't mean that
20 there was actually any evidence at that time corroborating
21 that. They sometimes write the reports just based on what
22 other people are telling them and it's written from that
23 perspective.
24 Okay. Have you ever seen or experienced a
25 situation where a report or accusation from one person to

1 another didn't match the full story? I think most people
2 have experienced something like that at some point.
3 Do you believe that officers are human, police
4 officers are human, and, therefore, capable of making
5 mistakes in judgment or documentation?
6 Do you believe that law enforcement and U.S.
7 court IT infrastructure is immune to data compromise?
8 Have any of you ever heard of instances where court IT
9 systems were compromised, maybe recently, and there were
10 evidentiary concerns as a result of that?
11 Would you question evidence that doesn't match
12 other facts in the case?
13 I'm almost done. I actually used ChatGPT to
14 help me do this. Can you weigh conflicting stories fairly
15 even if one side seems emotional and compelling?
16 And do you understand that an accusation alone
17 isn't proof and that evidence must be consistent and
18 verifiable?
19 Do you agree that sometimes people can say one
20 reason for why they did something or said something as a
21 response to some external pressures? Like they're saying
22 something that they know a spouse or some significant
23 other wants them to say when really that's not why they
24 did something. As in people can be influenced and they
25 can claim that they did one thing or said one thing

1 because of this, but really it was because they didn't
2 want to make somebody else angry.
3 Can you keep an open mind if evidence doesn't
4 support a complaint that's made?
5 Do you use Facebook or Messenger? All of you
6 have experience with it? Okay.
7 Have you ever had an electronic message that you
8 sent someone taken out of context?
9 Do you agree that feelings and relationships can
10 be very complicated, and that feelings can change a lot,
11 sometimes on a daily or hourly basis, especially when
12 things like romance or any sort of significant other are
13 involved and those feelings are growing, that feelings can
14 change very rapidly?
15 Have you ever been misunderstood or falsely
16 accused based on incomplete information or assumptions?
17 Have you ever been misunderstood or falsely
18 accused -- I should specify falsely accused in a legal
19 setting based on incomplete information or assumptions?
20 And do you think criminal proceedings are the
21 best response to interpersonal disputes where the level of
22 threat is low or nonexistent, or do you think mediation
23 might be better suited to address low threat allegations?
24 And are you aware that mediation as an option is reported
25 to be significantly cheaper, maybe 90 percent cheaper,

1 than a criminal proceeding?
2 Do you believe that people should have to be
3 protected from talking to someone that they don't want to
4 talk to in the absence of a threat?
5 Do you think that it should be considered
6 emotionally distressing for somebody to so much as see
7 somebody in public that they don't want to have a
8 conversation with? As in that it would cause intense
9 mental suffering if you have a situation where there is no
10 threat present but somebody has determined that they don't
11 want to talk to someone. Do you think it's right or
12 reasonable for that person to claim emotional distress
13 simply because they've seen that person in public?
14 I think that's all the questions that I have.
15 THE COURT: Okay. Thank you.
16 Challenges for cause?
17 MR. PASKULOVICH: No, your Honor.
18 THE COURT: Challenges for cause?
19 THE DEFENDANT: I don't believe so, your Honor.
20 THE COURT: Okay. Peremptory challenges?
21 MR. PASKULOVICH: Actually, your Honor, going
22 back to challenges for cause, I believe it would be
23 appropriate for juror in seat no. 1. She stated she would
24 not be able to be fair based on her own personal
25 experience with a stalker. So out of fairness for

1 defendant and prosecution, I think that would be an
2 appropriate challenge for cause.
3 THE COURT: Thank you.
4 Any objections to that?
5 THE DEFENDANT: Your Honor, actually, I don't
6 think that necessarily just because this person has had
7 their own experience with stalking that it would
8 necessarily prejudice them towards the facts of this case,
9 and I've seen other things that are redeeming in the juror
10 that compelled me to not object.
11 THE COURT: Thank you.
12 I believe this particular juror, based upon her
13 experience and she's also indicated to the Court that she
14 could not listen fairly to the evidence based upon her
15 prior past experience, she was emotional and the record
16 should reflect she has been emotional during this
17 proceeding, rightfully so, and I am going to dismiss her
18 for cause. I don't think she could be a fair and
19 impartial juror as she's admitted to being.
20 And I'm sorry for your experience. If you just
21 want to have a seat in the jury pool, we can call another
22 juror.
23 COURT CLERK: Kyle Gargaro. Sorry if I said
24 that wrong.
25 MR. Gargaro: Take her seat?

1 THE COURT: Take her seat.
2 Go ahead, Counsel, whenever you're ready.
3 MR. PASKULOVICH: Out of all the questions that
4 we asked previous jurors -- or the jury pool that's up
5 here, did anything stick out to you?
6 JUROR NO. 1: There were a lot. So not really.
7 I did have -- you talked about law enforcement and courts.
8 There was a dog bite incident at my house a couple years
9 ago that kind of went through the court system (inaudible)
10 some kind of mediation. And my uncle was the police chief
11 in Portage. That's my affiliation there.
12 MR. PASKULOVICH: Okay. So dog bite, was that
13 court case 52-3 District Court?
14 JUROR NO. 1: No, I don't believe so.
15 MR. PASKULOVICH: All right. Was the Oakland
16 County Prosecutor's Office or Oakland County Sheriff's
17 Office involved?
18 JUROR NO. 1: Oakland County.
19 MR. PASKULOVICH: All right. And did they treat
20 you fairly?
21 JUROR NO. 1: Yeah.
22 MR. PASKULOVICH: And you can still be fair to
23 the defendant and the prosecution regardless of that
24 incident?
25 JUROR NO. 1: Sure.

1 MR. PASKULOVICH: All right. Have you ever been
2 accused of stalking or any crime?
3 JUROR NO. 1: I have not.
4 MR. PASKULOVICH: You've been a victim of a
5 crime?
6 JUROR NO. 1: I have not.
7 MR. PASKULOVICH: Okay. We heard a lot about --
8 from the defendant about reasonable doubt, proving the
9 case beyond a reasonable doubt. Do you know what
10 reasonable doubt means?
11 JUROR NO. 1: Yes.
12 MR. PASKULOVICH: All right. And that means we
13 don't have to prove beyond a shadow of a doubt, all doubt,
14 just a reasonable doubt. And you'll be able to listen to
15 Judge Carniak's instructions about what reasonable doubt
16 means.
17 Would you agree with me that you'll have -- at
18 the end of this case, unless you were a witness to the
19 crime, which you wouldn't be in the jury if you were a
20 witness, you're still going to have some questions about
21 what occurred? You won't know everything. The only way
22 you'd know everything about an offense is if you
23 personally saw it.
24 JUROR NO. 1: Sure.
25 MR. PASKULOVICH: And if you personally saw

1 everything, you'd be a witness, not a juror. So are you
2 comfortable convicting if I prove beyond a reasonable
3 doubt the elements of the crime, which the judge will tell
4 you I just have to prove my elements, I prove those
5 elements beyond a reasonable doubt and you still have
6 questions, would you still be comfortable convicting with
7 those questions if I met my burden of proof of each
8 element beyond a reasonable doubt?
9 JUROR NO. 1: Yeah, absolutely.
10 MR. PASKULOVICH: All right. Very good. Now,
11 defendant asked some questions about mediation. I'm not
12 sure what was being referred to. Criminal justice process
13 we have district court and circuit court. This is a
14 district court. And when someone makes a criminal
15 complaint, the case goes to the -- the police respond.
16 They make a report. They send that to the prosecutor.
17 Are you aware that it's the prosecutor, so in
18 this case the Oakland County Prosecutor's Office, that
19 decides to make a charge -- or issue charge? It's not the
20 individual victim. So like in this case, it's the People
21 of the State of Michigan versus defendant, not the victim
22 versus the defendant.
23 JUROR NO. 1: Yep.
24 MR. PASKULOVICH: And you're aware that it's not
25 the victim who makes the decision to charge; it's the

1 prosecution.

2 JUROR NO. 1: Yep.

3 MR. PASKULOVICH: Okay. And do you have an

4 issue with the prosecutor being the one who decides

5 whether there's charges or not?

6 JUROR NO. 1: No. It's how the system's set up.

7 MR. PASKULOVICH: Okay. In terms of evidence, I

8 had asked previous juror -- I've asked this jury pool if

9 you'll listen to the judge's instructions as to what

10 evidence is, and I've listed some of the types of

11 evidence, but are you comfortable with the idea that,

12 like, a police report, that's not evidence? The only

13 thing that's evidence for you to consider and for you to

14 decide the guilt or innocence of the defendant is what the

15 judge says is evidence, so sworn testimony and things that

16 are admitted as exhibits.

17 JUROR NO. 1: Yep.

18 MR. PASKULOVICH: You're comfortable only

19 considering those things?

20 JUROR NO. 1: Correct.

21 MR. PASKULOVICH: Is there anything you think

22 that's important for me to know or the defendant to know

23 why you cannot be an impartial juror? Is there anything

24 that sticks out?

25 JUROR NO. 1: Not really, no.

1 MR. PASKULOVICH: You think you can be a fair
2 and impartial juror to both sides?
3 JUROR NO. 1: Yep.
4 MR. PASKULOVICH: All right. Thank you for
5 answering my questions.
6 THE COURT: Go ahead, Mr. Parton. You have
7 questions for juror no. 1?
8 THE DEFENDANT: So I suppose it's -- you took
9 the time to speak to my questions on mediation. I should
10 clarify those questions. They didn't have anything to do
11 with presuming current State response, more so just the
12 matter of -- what was the exact question again? I was
13 asking if you believe that criminal proceedings are the
14 best response. It had nothing to do with what -- any
15 doubt as to what the current response is right now.
16 The current response is if somebody contacts the
17 police and says, I feel afraid, someone contacted me,
18 there's no attempt to get the other person's point of view
19 before taking whatever evidence from that individual and
20 proceeding to criminal trial. In other words, there's no
21 mechanism to compel mediation or to try to take both
22 parties and ask them what they feel. The criminal
23 proceeding is triggered by one person claiming fear as
24 opposed to any sort of a mediative response, which may be
25 cheaper or more effective at reducing fear and reducing

1 resentment between the parties.

2 Mediation is not attempted today, but I was

3 simply asking if you believe that the current State's

4 response, criminal proceedings, even in events where

5 there's no evidence of any threat to personal safety or

6 even so much as verbal abuse, any sort of threatening

7 behavior, that it's the best response to immediately try

8 someone as a criminal as opposed to attempting some sort

9 of State-led mediation. So that is to elaborate on that

10 question if there's any questions about that.

11 JUROR NO. 1: Am I answering a question, or I

12 didn't understand.

13 THE DEFENDANT: Well, he took the time to

14 discuss that, my question, and I was just elaborating upon

15 it because I wasn't making any sort of critique or asking

16 you to make any or asking you if you were aware of what

17 the current response is. I was asking you if you believe

18 that how we do things right now is the best way to do

19 things.

20 JUROR NO. 1: I'm not in law enforcement, but I

21 assume we're talking criminal. Mediation doesn't always

22 work, right, or mediation makes it a more contentious sort

23 of situation?

24 THE DEFENDANT: But as a first solution.

25 JUROR NO. 1: I guess it would depend on the

1 crime.

2 THE DEFENDANT: And that's -- I could agree with

3 that. It depends entirely on the facts of the crime or

4 the facts of the situation, as you say, before it would be

5 considered a crime.

6 Sorry. I lost my train of thought a little bit.

7 I don't feel like I really need to go through and ask

8 every single question of you again because you were

9 present here and you did hear most of them, but I guess

10 we'll rattle through some of the most important ones.

11 Just to reask, do you have any professional or

12 personal ties to Oakland County or law enforcement?

13 JUROR NO. 1: No. It was just my uncle in

14 Portage, not Oakland County.

15 THE DEFENDANT: Okay. Your uncle in Portage --

16 JUROR NO. 1: He was a police chief.

17 THE DEFENDANT: He was the police chief.

18 JUROR NO. 1: In Portage.

19 THE DEFENDANT: When was the last time you spoke

20 with him?

21 JUROR NO. 1: Probably a couple months ago. I

22 see him a couple times a year.

23 THE DEFENDANT: Okay. So he's not estranged

24 from you or anything.

25 JUROR NO. 1: No, not at all.

1 THE DEFENDANT: That's the only person to be
2 involved with judicial staff or law enforcement in
3 general, or that's just the only person you know in
4 Oakland County or who was associated in Oakland County.
5 JUROR NO. 1: Well, he's not associated with
6 Oakland County. He's in Portage. Are you saying what
7 kind of interactions that we had with law enforcement in
8 Oakland County?
9 THE DEFENDANT: No. I was asking, the people
10 that you know -- sorry. Let me -- do you have any
11 professional or personal ties to Oakland County courts or
12 law enforcement?
13 JUROR NO. 1: I do not. I do not know anyone
14 who's working in the courts or law enforcement.
15 THE DEFENDANT: So nobody in the court system or
16 law enforcement in general outside of Oakland County
17 either.
18 JUROR NO. 1: Correct, other than the person I
19 mentioned.
20 THE DEFENDANT: Your uncle in Portage.
21 JUROR NO. 1: Correct.
22 THE DEFENDANT: You said he's a -- I'm sorry.
23 JUROR NO. 1: That's okay. He used to be a
24 police chief. So that's the only person in law
25 enforcement I know outside Oakland County. I don't know

1 anyone inside Oakland County.

2 THE DEFENDANT: Okay. All right. Thank you.

3 JUROR NO. 1: Yeah.

4 THE DEFENDANT: Do you agree that sometimes

5 people can say one reason for a behavior as a response

6 when, really, external pressures are causing them to say

7 that as their explanation?

8 JUROR NO. 1: Sure.

9 THE DEFENDANT: Are you familiar with how easy

10 it is to create fake accounts using someone else's name or

11 picture concerning social media?

12 JUROR NO. 1: I mean, sure, it can be done. I

13 don't know how easy it is or how easy it's not.

14 THE DEFENDANT: Okay. Do you use Facebook or

15 Messenger?

16 JUROR NO. 1: I do, both.

17 THE DEFENDANT: I'm sorry, what?

18 JUROR NO. 1: Yes, both.

19 THE DEFENDANT: Both? Okay. Any other social

20 media?

21 JUROR NO. 1: Embarrassingly enough TikTok and

22 LinkedIn.

23 THE DEFENDANT: I think LinkedIn's the more

24 embarrassing. I'm familiar with both of them, too.

25 Can you evaluate social media evidence

1 skeptically, knowing it's not always tied to the person
2 being accused?
3 JUROR NO. 1: Yeah (inaudible) need to be proven
4 that it's not tied to, but, yes.
5 THE DEFENDANT: You're saying it needs to be
6 proven that an account that's contacting someone is
7 actually tied to the defendant or the person being
8 charged.
9 JUROR NO. 1: Just I would assume it was the
10 person unless it was proven that it wasn't. Does that
11 make sense?
12 THE DEFENDANT: Okay. So you would assume that
13 it was unless it was proven it wasn't.
14 JUROR NO. 1: Correct.
15 THE DEFENDANT: How would somebody prove that an
16 account wasn't theirs if they have no access to it?
17 JUROR NO. 1: That wouldn't be my job, right? I
18 don't know --
19 THE DEFENDANT: Because it's innocent until
20 proven guilty. The responsibility is to prove that I, the
21 defendant, did something, not that they didn't do
22 something.
23 JUROR NO. 1: No. No. I get that part. I
24 guess I'm just saying my knowledge of social media, just
25 in my mind, it'd have to be proven that it wasn't if it

1 has the person's name on it and the person's contact
2 information. I guess then we're arguing reasonable doubt.
3 In order for reasonable doubt, I would think you'd really
4 have to show proof that it wasn't that person. Does that
5 make sense?
6 THE DEFENDANT: It doesn't to me only because if
7 you are not the person that operated the account, you have
8 no mechanism by which to prove that it wasn't you if it's
9 controlled by somebody else. There's no way for you to
10 log into it. Proving that it's not yours would consist of
11 sitting by the login page and saying, look, I don't know
12 the password. Of course --
13 THE COURT: Okay. You need to ask a question.
14 THE DEFENDANT: Okay. I apologize.
15 THE COURT: That's okay.
16 THE DEFENDANT: Let me think about this. Have
17 you had a complaining witness that was stating without
18 knowledge -- without firsthand knowledge that an account
19 must have been somebody else? Would you require proof
20 that that account actually belonged to the person in
21 question?
22 JUROR NO. 1: I'm sorry. If I witnesses -- say
23 it one more time.
24 THE DEFENDANT: If -- like put it as an example.
25 If I said this account over here -- I'm sorry. What was

1 your name?

2 JUROR NO. 6: I'm Kyle.

3 THE DEFENDANT: Kyle. If I said this account

4 here that says Kyle as the name, 'cause Facebook you can

5 put whatever name you want, and it has a picture of Kyle's

6 face, I say this Facebook account messaged me and said

7 that they were going to come to my house and cut off my

8 head or something crazy like that. I say, it must have

9 been Kyle, because the profile has his name and a picture

10 of his face on it. Would you agree that it needs to be

11 proven that you actually had access to that account before

12 we would try you with the crime of stalking and say that

13 it was you?

14 JUROR NO. 1: Try -- I guess I would -- you'd

15 prove that it wasn't yours by -- and I'm not a tech guy or

16 whatever -- an IP address or where it's coming from or

17 that sort of thing that it wouldn't be. I'm not trying to

18 be contentious. I'm just trying --

19 THE DEFENDANT: I know.

20 JUROR NO. 1: Okay.

21 THE DEFENDANT: We're just trying to get the

22 bottom.

23 MR. PASKULOVICH: Judge, would we be able to

24 approach briefly?

25 THE COURT: Yes.

1 (At 11:49 a.m., an off-the-record discussion was
2 held at the bench.)
3 THE COURT: Okay. It's my understanding -- are
4 you done asking?
5 THE DEFENDANT: I think I am, your Honor.
6 THE COURT: Okay. First of all, challenges for
7 cause.
8 THE DEFENDANT: Yeah. My challenge for cause
9 would revolve around Kyle stating that he --
10 THE COURT: Juror no. 1?
11 THE DEFENDANT: I apologize. Juror no. 1
12 stating that he would need proof that somebody doesn't
13 operate an account as opposed to proof that they do in
14 order to implicate them in a crime. Which, no offense to
15 the juror, I think it demonstrates a -- I don't want to
16 say a lack of understanding of the statute of a lack of
17 understanding of the proceeding at hand. It's just --
18 JUROR NO. 1: I can't be offended. Say what you
19 want to say. You're on trial. Say what you want to say.
20 THE DEFENDANT: It seems backwards to me.
21 That's not -- I don't think that that mentality is
22 conducive towards innocent until proven guilty.
23 THE COURT: Thank you.
24 MR. PASKULOVICH: Your Honor, I had an
25 opportunity to ask juror in seat no. 1 questions. He's

1 indicated a willingness to follow the law. Regrettably
2 for defendant, we cannot pick jurors that we think are
3 personality or conducive for cause challenges. For cause
4 it's strictly about fairness, ability to follow the law.
5 I think it's inappropriate if he thinks it's conducive to
6 his viewpoint or not.
7 THE COURT: So let me ask juror no. 1, because
8 some of the questions may have been a little bit
9 confusing. Your job, all of your jobs, are to listen to
10 the evidence that's been presented, apply it to the facts
11 of the case -- or apply it to the law as I give it to you,
12 excuse me. So the evidence and the facts, apply it to the
13 law as I give it to you, and that's how you decide if
14 somebody -- if the People have proven beyond a reasonable
15 doubt that defendant has committed that crime.
16 Question to you, juror no. 1, can you listen to
17 the evidence that's been presented, apply it to the law as
18 I give it to you, and in that way make a determination,
19 the guilt or innocence, of this particular individual?
20 JUROR NO. 1: Yes, I believe I can.
21 THE COURT: Okay. Is there anything in your
22 background or personal that would make you be unfair or
23 unbiased and not be able to do that for either the
24 prosecution or the defense?
25 JUROR NO. 1: No.

1 THE COURT: Okay. I'm going to deny your
2 challenge for cause.
3 Peremptory challenges?
4 THE DEFENDANT: Yeah. I would like to use one
5 of my peremptory challenges.
6 THE COURT: For?
7 THE DEFENDANT: For juror no. 1.
8 THE COURT: Okay. Thank you. Juror no. 1, if
9 you want to have a seat, that would -- and we'll call
10 another juror.
11 COURT CLERK: Taylor Mills.
12 THE COURT: Go ahead, whenever you're ready.
13 MR. PASKULOVICH: So I'm not going to go over
14 all the questions we did. I'm sure everyone's getting
15 hungry for lunch. I certainly am.
16 Is there anything that stood out about why you
17 could not be a fair, impartial juror throughout this
18 proceeding for either the prosecution or for the defense?
19 JUROR NO. 1: No.
20 MR. PASKULOVICH: Do you have any hesitations
21 about serving as a juror?
22 JUROR NO. 1: No.
23 MR. PASKULOVICH: Ever been a victim of a crime?
24 Accused of a crime?
25 JUROR NO. 1: (No audible response).

1 MR. PASKULOVICH: Any relationships with Oakland
2 County Sheriff's Office or the court systems?
3 JUROR NO. 1: The only thing is my husband is a
4 firefighter in Rochester Hills, so I obviously know law
5 enforcement from that.
6 MR. PASKULOVICH: Any of the witnesses that I
7 listed, do you know them? And because your husband's a
8 firefighter, would you be more likely to trust the
9 testimony of the deputies or law enforcement just because
10 they're law enforcement, or would you treat them just the
11 same as any other witness?
12 JUROR NO. 1: Just the same.
13 MR. PASKULOVICH: All right. No further
14 questions. Thank you.
15 THE COURT: Go ahead. Do you have questions for
16 juror no. 1?
17 THE DEFENDANT: Okay. Juror no. 1, do you have
18 any professional or personal ties to Oakland County courts
19 or law enforcement?
20 JUROR NO. 1: Just what I stated, just my
21 husband (inaudible).
22 THE DEFENDANT: Because his question doesn't
23 involve personal ties (inaudible) focus is. I'm not sure
24 how you worded yours. I apologize if I seem confused. I
25 got two hours of sleep last night. I know that's no

1 excuse. That's probably common for a lot of people here.
2 Do you agree that sometimes people can say one
3 reason for a behavior as a response when, really, external
4 pressures made them say that? Do you agree that feelings
5 and relationships can be very complicated?
6 JUROR NO. 1: Yes.
7 THE DEFENDANT: Do you think criminal
8 proceedings are the best response to interpersonal
9 disputes, or would mediation be better suited to address
10 low or no threat allegations initially?
11 JUROR NO. 1: Depends on the situation.
12 THE DEFENDANT: Depends on the situation.
13 Do you understand that someone making a
14 complaint doesn't automatically mean that they were
15 victimized?
16 JUROR NO. 1: (No audible response.)
17 THE DEFENDANT: Can you keep an open mind if
18 evidence doesn't support the complaint made?
19 JUROR NO. 1: (No audible response.)
20 THE DEFENDANT: Have you ever been misunderstood
21 or falsely accused based on incomplete information or
22 assumptions?
23 JUROR NO. 1: Sure.
24 THE DEFENDANT: Okay. Do you want to provide
25 any detail?

1 JUROR NO. 1: I mean, that happens all the time.
2 People are going to make assumptions based on what you
3 say.
4 THE DEFENDANT: (Inaudible) a little personal
5 story. Thank you.
6 Are you familiar with how easy it is to create
7 fake accounts using someone else's name or picture?
8 JUROR NO. 1: I mean, I assume it would be, but
9 I've never tried it or are familiar with it.
10 THE DEFENDANT: Do you use Facebook or Messenger
11 and have you ever had a message taken out of context?
12 JUROR NO. 1: I use both and sure.
13 THE DEFENDANT: Are you familiar with how easy
14 it is to fabricate screenshots purporting to be of digital
15 correspondence?
16 JUROR NO. 1: Yeah.
17 THE DEFENDANT: And if digital evidence didn't
18 corroborate those screenshots, would you treat those
19 screenshots with skepticism?
20 JUROR NO. 1: I'm sorry. Can you --
21 THE DEFENDANT: If we did get evidence back from
22 a server that said this is from Facebook, these are the
23 conversations which occurred, and there are screenshots
24 which purport a conversation to have taken place but that
25 information doesn't back it up, would you treat those

1 screenshots with skepticism?

2 JUROR NO. 1: Sure.

3 THE DEFENDANT: Do you believe that law

4 enforcement and the U.S. court IT infrastructure is immune

5 to data compromise?

6 JUROR NO. 1: (Inaudible.)

7 THE DEFENDANT: I'm just kind of cherry picking

8 questions here. I feel like nothing's happening that

9 would compel me not to accept.

10 Can you commit to holding the government to its

11 legal burden of proof beyond a reasonable doubt?

12 JUROR NO. 1: (No audible response.)

13 THE DEFENDANT: Can you honestly say that you

14 would wait to hear all the evidence before forming an

15 opinion?

16 JUROR NO. 1: Yes.

17 THE DEFENDANT: And you're aware that a

18 defendant does not have to prove their innocence or prove

19 anything or testify in their own defense.

20 JUROR NO. 1: (No audible response.)

21 THE DEFENDANT: Do you think that the State has

22 an obligation to protect people from just not having a

23 conversation with someone that they don't like?

24 JUROR NO. 1: Depending on the situation.

25 THE DEFENDANT: Depending on the situation.

1 All right. Your Honor, I think that's
2 everything.
3 THE COURT: Okay. I'll ask the People,
4 challenges for cause?
5 MR. PASKULOVICH: None, your Honor.
6 THE COURT: Defense, challenges for cause?
7 THE DEFENDANT: No, your Honor.
8 THE COURT: Peremptory challenges?
9 MR. PASKULOVICH: No, your Honor.
10 THE COURT: Okay. Peremptory challenges?
11 THE DEFENDANT: None, your Honor.
12 THE COURT: All right. Looks like we do have a
13 jury, then. I'm going to have you report to right
14 directly up here. Behind juror no. 7 is the jury room.
15 We'll leave that open for you. We'll have you come here
16 at 8:30 a.m. on Wednesday. And usually we'll take a break
17 for lunch. You can go about your business at that time
18 and then we usually end around 4:30, okay, earlier if we
19 finish earlier, of course, and as I indicated potentially
20 on Thursday.
21 This building gets hot and cold, so I'd suggest
22 -- especially right in that jury box for some reason and
23 in the jury room -- suggest you dress in layers.
24 In the meantime, I ask you not to discuss this
25 matter with anyone, of course, not even your fellow jurors

1 until the time comes to do so, but not with family or
2 friends. You're not to do any investigation about this
3 case. We want you to get all the information from the
4 court when all parties are here present, and the reason is
5 for that some things may be inaccurate. You don't know.
6 You may check into things, and there's a reason that we
7 have certain rules of evidence and certain procedures that
8 we follow to make sure that the accuracy and the
9 information that you obtain is accurate.
10 So we just want you to go home, not think about
11 this case at all, not discuss it with anyone until the
12 time comes for you do so.
13 Is there anything further from either the
14 prosecution or the defense?
15 MR. PASKULOVICH: Not from the People.
16 THE COURT: Okay. Anything further?
17 THE DEFENDANT: No, your Honor.
18 THE COURT: Okay. All right. If you need a
19 letter for your employer or otherwise, you can get that
20 downstairs where you checked in.
21 Correct? I always ask this question.
22 And then you are otherwise free to go. Does
23 anybody have any administrative questions?
24 UNIDENTIFIED MALE: Is there anything we need to
25 do in terms of getting a pass or badge or something for

1 coming back in?

2 THE COURT: No. You're all set as it relates to

3 that. You'll just come in. I will mention, too, and I

4 should indicate the defendant who is representing himself

5 as well as the prosecution and standby counsel or any of

6 the witnesses are not going to say anything to you. They

7 may pass you in the hall. They've not being rude.

8 They're not allowed to talk to you. We want to avoid even

9 the appearance of impropriety that you may be talking to

10 one another.

11 But, no. Just come in. Check in like you did,

12 but you don't have to -- you go through security and then

13 just come right up upstairs into behind door -- juror no.

14 7.

15 Yes?

16 UNIDENTIFIED MALE: (Inaudible.)

17 THE COURT: I'm sorry?

18 UNIDENTIFIED MALE: Can we bring a notebook or

19 anything --

20 THE COURT: Oh, I thought you said a knife. We

21 will -- I do allow jurors to take notes, okay? And I'll

22 explain this a little bit more thoroughly. We don't give

23 it to you during opening statements or closing arguments

24 because that's not evidence, but we'll allow you to take

25 notes, and we'll hand out notebooks for that purpose.

1 UNIDENTIFIED MALE: Can we bring a bottle of
2 water to drink?
3 THE COURT: Yes.
4 Will they let them bring in a bottle?
5 We'll have bottled water for you.
6 UNIDENTIFIED MALE: Okay.
7 THE COURT: There's sometimes they're particular
8 about that, but we'll make sure you have bottled for you.
9 Okay. Anything else?
10 Okay. Great. So all rise for the jury. I'm
11 going to have the jurors that have been selected for you
12 to leave, and I just need to speak with the other jurors
13 briefly. You are free to leave. Thank you. We'll see
14 you Wednesday. Have a good weekend. I know it's not
15 quite Friday yet.
16 (At 12:02 p.m., prospective jurors exit
17 courtroom.)
18 THE COURT: Please be seated. Is there anything
19 else before we get started on Wednesday? We'll start with
20 -- I do have a few miscellaneous matters to handle on
21 Wednesday, but we'll get started as quickly as possible.
22 Anything further? I think all the evidentiary
23 issues and things, motions that the defense has brought up
24 has been indicated already, ruled upon. I'm assuming
25 there's nothing further.

1 Anything further from the People?
2 MR. PASKULOVICH: No, your Honor.
3 THE COURT: Anything further?
4 THE DEFENDANT: Yes, your Honor. Permission to
5 approach to discuss a condition of my bond.
6 THE COURT: Oh, you want to address bond? You
7 wouldn't approach for that. What is the issue regarding
8 bond?
9 THE DEFENDANT: I had had difficulty getting
10 updates from my therapist. At one point I just had
11 physical proof that I brought in --
12 THE COURT: Yes.
13 THE DEFENDANT: -- for my treatment.
14 THE COURT: You know, I did just receive that
15 notification. There was the last indication from your
16 therapist was April 1st. I'm assuming you've been to your
17 therapist since April 1st?
18 THE DEFENDANT: Yes, your Honor. And I have --
19 like I said, they made me come in and pick up a letter
20 physically.
21 THE COURT: What is that letter dated?
22 THE DEFENDANT: May 13, 2025.
23 THE COURT: Oh, that's from your therapist?
24 THE DEFENDANT: This is from my therapist.
25 THE COURT: Okay. I'll be happy to take a look

1 at that.

2 Okay. I want you to give that down to bond

3 compliance. It looks like you are in compliance. So

4 check out downstairs with bond compliance. Give them all

5 that information.

6 Anything else in that regard? Okay. Thank you.

7 MR. DOWNER: Judge, not in that regard. I did

8 have a question given the withdrawal and appointment as

9 standby counsel. Does the Court need a written order

10 stating that, or will the Court handle that?

11 THE COURT: I don't know that I need a written

12 order for that, but you probably would want that, I would

13 assume. So if you want to prepare a written order.

14 MR. DOWNER: It might make sense.

15 THE COURT: I think so. I think so, under the

16 circumstances.

17 MR. DOWNER: Because the court usually requires

18 in-person filing, any objection to me having it by

19 Wednesday morning?

20 THE COURT: No. No. You can hand-deliver it on

21 Wednesday morning, that's fine.

22 Okay. Thank you very much. And I just need to

23 talk to the jurors for a few minutes. Again, I just want

24 to thank you for your patience. You're all set. You can

25 go.

1 (At 12:05 p.m., matter concluded.)

2 - - -

STATE OF MICHIGAN)

) SS

COUNTY OF OAKLAND)

I hereby certify that this transcript, consisting of pages one through one hundred seventeen, is a complete, true and correct transcript of the proceedings had and the testimony taken in the matter of THE PEOPLE OF THE STATE OF MICHIGAN, versus FOX ROBERT PARTON, Case No. 24-007808, held on May 15, 2025.

/S/ Jennifer Przybylo

_____
Jennifer L. Przybylo, CER-5852
Certified Court Recorder
52/3 District Court
700 Barclay Circle
Rochester Hills, MI 48307

Dated:
June 23, 2025